

Private Security Level II

Student Guide



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Private Security Level II

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1 Instructor Course Preparation Checklist

This chapter provides a checklist of equipment and materials the instructor requires to teach the course you're attending.

2 Introduction

2.1 Chapter Training Objective

Upon successful completion of this module, participants will be able to participate in the course.

2.2 Chapter Outline Details

1. Review course overview, schedule, and completion requirements.
2. Ask questions related to the course.

2.3 Course Overview

In this module, the instructor will familiarize participants with the facility's safety and convenience features, the location of the facility's designated smoking area(s), and any additional resources or equipment available.

Participants will introduce themselves, complete registration procedures, and receive course information, including prerequisites and attendance requirements, as well as evaluation and certification information. The instructor will conduct a brief overview of the course, which includes the goals and objectives, required participant equipment, and class schedule.

I Course Goal

Upon successful completion of this course, participants will be able to apply the Private Security Level II course proficiencies to their position as a security officer in the field.

II Target Audience

Non-commissioned security officers in the State of Texas and any person wishing to pursue a Texas non-commissioned security officer certification.

III Delivery Methods

Course delivery consists of small group discussions, lectures, participant activities and presentations. This course can be delivered in either a face to face or online format. The participant guide is the basic reference document for this course.

IV Course Prerequisites

There are no prerequisites for this course.

V Course Length

6 hours

VI Registration/Attendance

Class attendance is an essential part of the education process, and participants are expected to attend all class sessions.

VII Class Schedule

The following schedule shows the block schedule starting at 8:00 am. If the training provider elects to start at a different time, then the module blocks will shift accordingly.

Day	Session	Module
Day 1	8:00 – 08:15	Module 2: Introduction
	8:15 – 09:00	Module 3: Security Officer Basics
	9:00 – 10:00	Module 4: Applicable Rules and State Laws
	10:00 – 11:00	Module 5: Personal Communication and Conflict Resolution
	11:00 – 12:00	Lunch
	12:00-1:30	Module 6: Use of Force
	1:30-2:00	Module 7: Arrests
	2:00-2:30	Module 8: Verbal and Written Communication Best Practices
	2:30-3:00	Module 9: Emergencies and Safety Hazards

VIII Participant Evaluation Strategy

Evaluation is accomplished by a written examination. In order to receive course credit and a certificate of completion, participants must complete the written examination with a score of at least 75%.

3 Security Officer Basics

3.1 Chapter Training Objective

Upon the successful completion of this module, participants will be able to describe basic roles and responsibilities of security officers in a variety of contexts.

3.2 Chapter Outline Details

1. Describe the Private Security Program.
2. Review the general qualifications for a non-commissioned security officer.
3. Identify the DPS and RSD websites a security officer should utilize throughout their career.
4. Describe the records and appeal process.
5. Describe the roles and responsibilities of security officers.
6. Differentiate between roles for security officers and peace officers.
7. Discuss professionalism and ethics.
8. Discuss critical incident response for security officers.

3.3 Private Security Program

The Private Security Program (PSP) is overseen by the Regulatory Services Division (RSD) and exists to provide effective oversight of regulated programs as authorized by the Texas Legislature. The regulatory authority of the RSD varies by program, and may extend to partnerships with other federal, state, and local agencies.

RSD protects the public by:

- conducting fingerprint-based background checks on applicants,
- investigating and resolving complaints, and
- taking disciplinary action against licensees.

Note: This includes seeking criminal prosecution of those who perform private security services without a license.

Those considered part of the private security profession include:

- unarmed security guards
- armed security guards
- personal protection officers

- private investigators
- alarm systems installers/monitors
- armored car couriers
- electronic access control device installers, and
- locksmiths.

The RSD regulates the private security profession as the Private Security Program (PSP) under the authority of the Texas Occupations Code (TOC) §1702 and the related administrative rules in the Texas Administrative Code (TAC) Chapter 35 Private Security.

3.4 General Qualifications

1. TOC §1702.113 establishes the general qualifications for an applicant as a non-commissioned security officer and states that the applicant must be at least 18 years of age and must not:
 - At the time of application be charged under an information or indictment with the commission of a Class A or Class B misdemeanor or felony offense determined to be disqualifying by commission rule.
 - Have been found by a court to be incompetent by reason of a mental defect or disease and not have been restored to competency.
 - Have been dishonorably discharged from the United States armed services, discharged from the United States armed services under other conditions determined by the commission to be prohibitive, or dismissed from the United States armed services if a commissioned officer in the United States armed services.
 - Be required to register in this or any other state as a sex offender.
2. Unless the person holds a license as a security services contractor, a person may not:
 - Act as an alarm systems company, armored car company, courier company, guard company, or locksmith company.
 - Offer to perform the services or engage in business activity for which a license is required.

Note: A person licensed only as a security services contractor may not conduct an investigation other than an investigation incidental to the loss, misappropriation, or concealment of property that the person has been engaged to protect.

3. As it relates to qualifications of a non-commissioned officer, it is important to know key terminology as defined in the Texas Occupations Code.

I Security Officer

1. An individual acts as a security officer if the individual is:
 - employed by a security services contractor or the security department of a private business; and
 - employed to perform the duties of an alarm systems response runner who responds to the first signal of entry, a security guard, security watchman, security patrolman, armored car guard, or courier guard.

II Security Department

1. A security department acts as the security department of a private business if it:
 - has as its general purpose the protection and security of its own property and grounds; and
 - does not offer or provide security services to another person.
2. The security department of a private business may hire individuals who in the course of employment:
 - come into contact with the public
 - wears a uniform commonly associated with security personnel or law enforcement
 - any type of badge commonly associated with security personnel or law enforcement
 - a patch or apparel containing the word “security” or a substantially similar word that is intended to or is likely to create the impression that the individual is performing security services

Note: An individual who carries a firearm in the course of employment must obtain a private security officer commission.

3. Security departments shall maintain an individual’s criminal history record on file at the business and shall make the record available for inspection by the Department.

Note: The security department of a private business may not hire or employ an individual to perform a duty described by TOC §1702.222 if the individual has been convicted of a crime that would otherwise preclude the individual from being licensed under this chapter.

4. The Regulatory Services Division shall maintain a registry of security departments that provide notice of the intent to employ a commissioned security officer and the name, title, and contact information of the person serving as contact for each security department.

III Guard Company

1. A person acts as a guard company if the person employs an individual or engages in the business of or undertakes to provide a private watchman, guard, or street patrol service on a contractual basis for another person to:
 - prevent entry, larceny, vandalism, abuse, fire, or trespass on private property;
 - prevent, observe, or detect unauthorized activity on private property;
 - control, regulate, or direct the movement of the public, whether by vehicle or otherwise, only to the extent and for the time directly and specifically required to ensure the protection of property;
 - protect an individual from bodily harm including through the use of a personal protection officer; or
 - perform a function similar to a function listed in this section

3.5 DPS & RSD Websites

1. There are two relevant websites to the career of private security:
 - The Texas Department of Public Safety website
 - <https://www.dps.texas.gov/>
 - The official Public Information Internet website developed and maintained by DPS for the purpose of providing information to the public.
 - The Regulatory Services Division website
 - <https://www.dps.texas.gov/section/private-security>
 - The website developed and maintained by RSD to communicate public information. This includes related public or legal notices that a person is required to publish under a statute or rule. It also contains any other information that a person submits for publication to and from private security professionals.

2. The RSD Private Security website will be utilized and referred to throughout this course. It will also be very useful throughout your career as long as you are engaging in business activity requiring a license under the Private Security Act. The website is used for correspondence between the applicant, the licensee, company owners and representatives, the general public, and RSD.

Some topics on the DPS site that will be referenced in this course include:

- Laws and Regulations
 - A key part of the Laws and Regulations section of the website discusses Agency Opinions Related to Private Security. This section helps interpret the statutes surrounding private security.
- Licensing
 - The Private Security Program has an online application process and licensing database called Texas Online Private Security (TOPS). TOPS is a user-friendly program that provides faster application processing, application status updates via email, and real time licensing information.
 - TOPS website: <https://tops.portal.texas.gov>
- Forms
 - This section contains the necessary forms to complete your application.

3.6 Roles and Responsibilities

There are many roles and responsibilities required of a security officer depending on the client's needs. Regardless of the situation, the primary duty of a security officer is prevention and deterrence of crime while enforcing the rules and regulations where they are guarding—protections of people, property, and information.

In order to perform the duties of a security officer, whether commissioned or non-commissioned, the security officer must be licensed to an active licensed guard company.

As previously discussed as part of General Qualifications, Guard Company, a person acts as a guard company if the person performs, or employs an individual to perform, the actions of:

- preventing entry, larceny, vandalism, abuse, fire, or trespass on private property;
- preventing, observing, or detecting unauthorized activity on private property;

- controlling, regulating, or directing the movement of the public, whether by vehicle or otherwise. This is only to the extent and for the time directly and specifically required to ensure the protection of property;
- protecting individuals from bodily harm.

I Observe and Report

The primary responsibility of a security officer is to observe and report findings to the proper authorities, employer, or client as instructed by the company's policies and procedures. In emergency situations, the security officer should be able to evaluate the situation and respond accordingly by notifying proper local authorities such as police, fire, and/or ambulance.

Security officers can carry out their responsibilities in both stationary and mobile positions. Your responsibilities as a security officer can also vary with the size, type, and location of the employer. You should professionally get to know the people and the property you are hired to protect.

In the event of a critical incident, it is very important to remain calm, speak with a clear voice, notify the proper authorities of the situation, and render assistance to people in an orderly fashion to a safe place away from any hazard.

II Deterrence

A security officer's visible presence will typically deter most individuals from doing something illegal or harming others within your work location. Most individuals will be deterred by you acting as an observant witness. Security officers also serve as easy communication and coordination with law enforcement, which further deters.

III Documentation

As previously reported, while acting as a security officer, your primary responsibility is to observe and report; you are the eyes and the ears of whatever the client has hired you to protect. You must be alert and aware of your surroundings at all times. In your communications and documentation, you will need to be descriptive about events that you observe.

It is beneficial to maintain complete and accurate logs for both your employer and your own records. These details may tie into large situations later, so having a trail of documented information will help ensure that the proper steps were taken to explain any potential issues. Proper documentation will also mitigate the impact of litigious persons.

IV Controlling Access

A security officer often controls the movement of people, vehicles, and materials entering and exiting the work location. This may involve checking identification, credentials, authorized documents, and/or inspecting items/parcels to ensure that security is maintained. An officer must know how to properly use any alarm and surveillance systems present at the location to assist with these efforts.

V Responding to Emergencies

An emergency, also referred to as a critical incident, is any unexpected event that occurs that may pose danger to lives or property. In the case of an emergency, you may be the first person on site and need to work with others or provide guidance until other professionals arrive. In an emergency, you may be asked to assist law enforcement with traffic control in any public spaces. Always refer to your company's policies and procedures concerning these situations.

VI Protection of Persons and Property

Your main responsibility is to provide protection of specific people and/or at specific locations through a contractual agreement while licensed to a licensed guard company.

a. Protecting People

While guarding your assigned area, whether from a stationary position or a mobile patrol, you should be identifying potential safety hazards that might bring harm to those around you. You should also be preventing unauthorized individuals from gaining access to the site. Some companies will also have security officers escort employees to specific locations.

b. Protecting Property

While working, you are also responsible for preventing the loss or damage of property. This could include theft and robbery, as well as vandalism in all its forms. Security officers usually accomplish this through their presence deterring said actions. You are also often in charge of controlling access to areas through use of barriers and surveillance equipment.

c. Protecting Information

It is also important to keep sensitive information confidential to prevent stealing of intellectual property and/or cybercrimes. A security officer typically has knowledge and access to ingress and egress routes along with keys and access cards. Do not allow unauthorized use of these items. If a camera or alarm system is down or under repair, not sharing this information stops individuals from exploiting temporary vulnerabilities. Keeping passwords and special access codes confidential and computers/systems secure/locked when not actively using them prevents unauthorized access to computers and databases.

d. Citizen’s Arrest

Every citizen in the State of Texas has the right to make a citizen’s arrest. A security officer is a private citizen and therefore has that same right to make a citizen’s arrest although the officer does not have the same arrest power as a public servant.

The following categories allow you to make a citizen’s arrest:

- a felony is committed in your view,
- a breach of the peace is committed in your view, and
- you are acting to prevent the consequences of theft.

You cannot lead someone to believe you are a public servant just because you can make a citizen’s arrest. It is a third-degree felony to impersonate a public servant with the intent to gain compliance using a pretended official authority. This is also true of someone who knowingly exercises any function of a public servant.

3.7 Security Officer and Peace Officer Roles

In order to become licensed as a peace officer in Texas there are four required steps:

1. You must meet the minimum standards for enrollment and initial licensure.
2. You must successfully complete the basic licensing course.
3. You must pass the state licensing examination.
4. You must be appointed by a law enforcement agency.

A peace officer is licensed by the State of Texas. A comparison of the capabilities of a peace officer and a non-commissioned security officer can be found in Table 3.1.

Table 3.1.: Capabilities Comparison Non-Commission Security Officer vs. Peace Officer

	Non-Commissioned Security Officer	Peace Officer
Arrest Without a Warrant	• When the offense is committed: ○ Within the security officers view, and ○ If the offense is a felony or an offense against the public peace • To prevent the consequences of theft	• Under the following circumstances: • When a person is found in suspicious places and under circumstances.

	Non-Commissioned Security Officer	Peace Officer
	Source: CCP 14.01 & CCP 18.16	• When a peace officer sees a person, they have probable cause to believe have committed an assault resulting in bodily injury to another person. • When the peace officer has probable cause to believe a person has committed an offense defined by Penal Code Offenses Against the Family Section 25.07. • When the peace officer has probable cause to believe a person has committed an offense involving family violence. • When the peace officer has probable cause to believe a person has prevented or interfered with an individual's ability to place an emergency call. • When a person makes a statement to the peace officer that establishes probable cause to believe that the person has committed a felony.
Carrying a Firearm	Under no circumstances	• At all times on duty or off duty unless in a federal courthouse or otherwise posted

	Non-Commissioned Security Officer	Peace Officer
Carrying Intermediate Weapons	- Under no circumstances (Level II) - Requires a Level III or IV	At all times on duty or off duty unless in a federal courthouse or otherwise posted

3.8 Professionalism and Ethics

I Professionalism

A profession is an occupation that typically requires a particular skill or specialized training. Professionals are individuals who know the nature of their specialty and what is best for their client.

Being a security officer is not just a job, it is a profession. As a security officer you are in position of public trust. The public, your employer, co-workers, and clients should be able to trust you. You must not use your position for personal or professional gain. Always conduct yourself in a professional manner on duty and off duty.

As a security officer you will have to interact with individuals who are challenging. In the normal course of your work, you will get to know the habits, schedules, and personalities of the people you are around. You will know the layout of the assigned area, and who should and should not be present.

a. Actions

1. Professional Actions

As a security officer your job responsibilities will often cause you to come into contact with the public. You should:

- remain calm and professional to keep encounters stress free,
- persuade people to comply voluntarily,
- use effective professional language, and
- constantly examine yourself and the way you choose to interact with others.

2. Unprofessional Actions

You should not:

- give into greed,
 - Theft from your workplace is both unethical and criminal.
 - It will almost certainly result in criminal charges.
- give into anger, or

- Rising to the state of emotion of a belligerent individual can escalate situations.
- This discourages and individual's voluntary compliance.
- ignore reasonable critique.
 - Even if a situation ends with voluntary compliance, you might receive critique from the individual, your co-workers, or your supervisor.
 - Remember to listen to other perspectives, even if you do not agree. Future encounters will go more smoothly when there is a mutual respect of opinions.

3. Appearance

Professional appearance consists of personal image with regard to clothing, grooming, manners and etiquette, personal behavior, and communication effectiveness.

4. Attire

Your attire while working will mostly be your uniform as defined by your company. However, for any clothing not provided by your employer, must be kept in proper condition. You can do this by:

- replacing any clothing with holes,
- avoiding clothing with sayings, phrases, or large logos, and
- following company guidelines for appropriate dress.

5. Hygiene

Your presence alone has the ability to alter behavior. You should maintain proper hygiene by:

- keeping your uniform clean and pressed,
- keeping your body and hands clean by washing regularly, and
- assuring that you are well groomed to include keeping your hair clean and tidy and your nails trimmed.

6. Demeanor

The way you carry yourself is also important. To carry yourself in a professional manner you should:

- maintain a basic level of physical fitness,
- maintain good posture,
- keep a confident, positive attitude,
 - Avoid showing anger or fear as this can be detected by others. This can be helped by training yourself to deflect or ignore rude comments.
- speak with a clear and calm voice.

By maintaining a professional demeanor, you are more likely to quickly and effectively resolve the problem.

b. Reactions

All of us have certain expressions or phrases that cause us to react with anger, humiliation, prejudice, or other negative emotions. Some reactions or statements that individuals might express include:

- You can't make me!
- You're not a cop!
- I know my rights!
- Do you know who I am?
- You can't arrest me!
- You're just a rent-a-cop!

Everyone has unique and individualized triggers; you will need to work to identify and recognize your triggers when they occur so that you can maintain composure when faced with them. When confronted with a verbal attack, recognize it for what it is and carefully choose how you will respond. Instead of reacting to the verbal attack, act thoughtfully in response to the situation. Reacting without thinking will cause your personal trigger reactions to take over and escalate the situation.

There are two basic types of individuals you will encounter through your work as a security officer:

- The first type will respond to your authority and requests by complying readily.
- The other type will challenge you. This is not usually a personal response; they simply do not routinely respond to authority. They are not rule followers and will question and ask, "Why?" This opens a dialogue and requires further attention and response from you.

Both of these types of individuals deserve your respect. You always begin any dialogue where you are seeking voluntary compliance by asking, not demanding. Your voice should be clear and calm, with appropriate language and tone. By maintaining professional responses, you are more likely to resolve the problem.

II Ethics

Ethics is the discipline dealing with what is good and bad and with moral duty and obligation. It is important in that it develops ways for understanding and learning of moral duty and right or wrong. It is the framework that guides a person's behavior. People who believe they have no duty other than to themselves will act differently than those who believe they have a duty to assist others in many circumstances. Ethics attempts to look at these differing approaches to determine if one view is better than another and then to generate discussion and consideration of differing views regarding the same problem.

Being professional includes being ethical. A security officer that is not ethical undermines the legitimacy of the position and the trust in the procedural justice system. Always keep ethics as an integral part of your personal and professional life.

a. Personal Ethics

Every aspect of human behavior is influenced by personal values, but values are not easily defined. Their definitions and interpretations vary from period to period, location to location, person to person, and situation to situation. Often, they are what lead us to tell the truth, keep our promises, or help someone in need. People typically reduce the idea of ethics to simple right and wrong. Though this is an oversimplification of the idea, it can be a good starting point for discussing the topic. There is a bedrock of morals underlying our lives on a daily basis. They typically help us make decisions that create positive impacts and steer us away from unjust outcomes.

Part of being ethical includes being objective, impartial, and neutral. Practice these ethical behaviors in your personal life as well as when you are representing the profession.

b. Workplace Ethics

Security companies should strive to instill workplace ethics. Workplace ethics are defined as a set of values, moral principles, and standards that need to be followed by both employers and employees in the workplace.

Examples of ethical behaviors in the workplace include:

- obeying the company's rules,
- communicating properly,
- taking responsibility,
- holding others accountable,
- demonstrating professionalism, and

- showing trust and mutual respect for your colleagues and clients at all times.

Differences in priorities and values can complicate the relationship security companies have with their clients. If personal standards of right and wrong are not consistent with the law, a security officer's actions may have negative consequences. If security officers fail to hold themselves accountable, the public's perception will be that the security officer's position as a whole is unjust. It ultimately erodes the legitimacy of security officers and security companies within society.

c. Model Code of Ethics of Security Guards

A model code of ethics that applies to security officers includes:

- being honest and acting without bias or personal prejudice,
- valuing and protecting the interests of their employer,
- honoring and upholding confidentiality, and
- performing duties with diligence, decorum, and professionalism.

As a security officer, you should ask yourself the following questions when you are considering a course of action to pursue:

- Is it legal?
- Is it permitted by my employer's code of conduct or ethics?
- How would it be viewed by my employer, the client, the public, or my family?
- Does this conflict with any of my own personal ethical standards?
- Is this something I would be ashamed of or later regret?
- Am I acting on emotions only?
- Am I thinking of how this could impact others?
- Will there be consequences for my action or lack of action?

4 Applicable Rules and State Laws

4.1 Chapter Training Objective

Upon successful completion of this module, participants will be able to recognize the rules and state laws that apply to security officers.

4.2 Chapter Outline Details

1. Recognize the rules and state laws for security companies and their licenses.
2. Recognize the rules and state laws for security officers and their licenses.
3. Recognize the rules and state laws for security officers that are subpoenaed.
4. Recognize the rules and state laws for security uniforms and vehicles.
5. Recognize the rules and state laws for weapons.
6. Recognize the rules and state laws for denial of license and disciplinary actions.

4.3 Company Rules and Laws

I Employment Requirements

Individuals licensed by the department to perform a regulated service may only perform such services for companies licensed under the Act.

A person or company may not contract directly with a client to perform a regulated service unless licensed by the department as a company under the Act. The employment relationship between a licensed company and its individually licensed or commissioned employees must be such that the licensee's commercial liability insurance policy provides the statutorily required coverage for claims arising from the regulated services provided on behalf of the licensee by its employees. The failure to maintain and provide current documentation of such coverage is a violation.

4.4 Rules and Laws for an Individual Security Officer

I Types of Individual Licenses

The types of individual licenses include:

- Alarm Installer
- Alarm Level I Instructor
- Alarm System Monitor
- Commissioned Security Officer

- Continuing Education Instructor (CE)
- Electronic Access Control Device Installer
- Level III Classroom Instructor
- Level III Combine (Firearm/Classroom Instructor)
- Level III Firearm Instructor
- Level IV Personal Protection Instructor
- Locksmith
- Non-Commissioned Security Officer
- Owner
- Personal Protection Officer
- Private Investigator

II Working Prior to Licensure

If 48 hours have passed since the submission of a substantially complete application in accordance with TAC §35.21 (including fees and electronic fingerprints), and the employee status appears as “Not Licensed or Incomplete Application” or does not appear in the online search, the applicant may be employed in an unarmed capacity if the employer conducts a background check on the applicant including a review of the DPS Criminal History and Sex Offender databases and confirmation that the applicant is not ineligible for licensure. The employer must maintain a record of the background check.

In cases where the employee does appear in the online search with a status of Licensed or Substantially Complete Application within 48 hours, employment in an unarmed capacity is permitted following a background check on the applicant. A commercially available criminal history background check (as an alternative to the DPS database) is acceptable in this case.

If DPS has not provided the notice within 48 hours, the background check must include a review of the DPS Criminal History database. If notice has been provided prior to 48 hours, the criminal history background check can be conducted through a commercially available database. In either case the DPS Sex Offender Registry must be reviewed.

III Renewal of Individual License Application

An application for renewal must be submitted in TOPS. The application must include:

- The required fee
- Fingerprints

- If the fingerprints on file do not meet current FBI or the department's quality standards, applicants will be required to submit a new set of electronic fingerprints to complete the renewal application process
- Criminal history check fee

A complete renewal application must be submitted prior to expiration for the current license to remain in effect pending the approval of the renewal application. If the completed application is not received by the department prior to the expiration date, no regulated services may be performed until a complete renewal application is submitted.

Commissioned security and personal protection: Please note that the above provisions do not allow for employment in an armed capacity prior to licensure, i.e. pocket card in hand.

a. Military Service Members

Exemptions from Penalty for Failure to Renew in Timely Manner

An individual who holds a license issued under the Act is exempt from any increased fee or other penalty for failing to renew the license in a timely manner if the individual establishes to the satisfaction of the department the individual failed to renew the license in a timely manner because the individual was serving as a military service member.

Extension of License Renewal Deadlines

A military service member who holds a license issued under the Act is entitled to two (2) years of additional time to complete: any continuing education requirements and any other requirement related to the renewal of the military service member's license.

IV Standards of Conduct

The State Seal of Texas may not be displayed as part of a uniform or identification card, or markings on a motor vehicle, other than such items prepared or issued by the department.

All licensees and company representatives shall cooperate fully with any investigation conducted by the department, including but not limited to the provision of employee records upon request by the department and compliance with any subpoena issued by the department.

An individual licensee issued a pocket card shall carry the pocket card on or about their person while on duty and shall present same to a peace officer or to a representative of the department upon request.

A company license holder may not require a customer provide any documentation certifying that the customer has received a COVID-19 vaccination, or is in post-transmission recovery, to gain entry to the licensee's premises or to receive regulated services from the license holder.

a. Deceptive Trade Practices

A person who performs or offers to perform an activity regulated under this chapter, but who is not licensed or otherwise authorized under this chapter to perform the activity, commits a false, misleading, or deceptive act or practice within the meaning of Section 17.46, Business & Commerce Code. A public or private right or remedy under Chapter 17, Business & Commerce Code, may be used to enforce this chapter.

b. Complaints

Complaints relating to alleged violations on the private security industry should be submitted in writing to department headquarters through the Private Security Program's website or mail to the department's Regulatory Services Division. The complaint should provide:

- name and contact information of complainant
- name and type of business of licensee
- specific dates and times of described events
- detailed description of the violation.

V Firearms Standards

No security officer may carry an inoperative, unsafe, replica, or simulated firearm in the course and scope of employment or while in uniform.

Commissioned security officers and personal protection officers may only carry firearms of a category recognized; the officers must be formally trained by approved instructors and submit documentation of the training to the department.

4.5 Uniform and Vehicle Related Rules and Laws

I Uniforms

a. Issuance of Security Officer Commission - Pocket Card

The department may issue a security officer commission to an individual employed as a uniformed security officer; and shall issue a security officer commission to a qualified employee of an armored car company that is a carrier conducting the armored car business under a federal or state permit or

certificate. A security officer commission issued under this section must be in the form of a pocket card designed by the department that identifies the security officer.

Photographs for Pocket Cards

TAC §35.24 states that if the applicant does not have a digital photograph on file with the department or the department is unable to access the photograph on file, the laminated pocket card will be issued without a photograph. When presenting such a pocket card to a peace officer or to a representative of the department, the licensee shall also present a valid government issued identification card or driver license.

b. Security Officer Uniforms

All commissioned and noncommissioned private security officers shall, at a minimum, display on their outermost garment the name of the company by which the security officer is employed, the word "Security," and the last name of the security officer. These items shall each be of a size, style, shape, design, and type that are clearly visible by a reasonable person under normal conditions.

Note: This does not apply to a personal protection officer while performing personal protection services in plain clothes.

The Private Security Act prohibits the use of a title or an insignia, or the wearing of a uniform, that is intended to give the impression that the person is connected with a government entity. The offense is a Class A misdemeanor and may also subject the licensee to administrative suspension under TOC §1702.361.

c. Use of Certain Titles, Uniforms, Insignia, or Identifications

A company license holder, or an officer, director, partner, or employee of a company license holder, may not:

- use a title, an insignia, or an identification card, wear a uniform, or make a statement with the intent to give the impression that the person is connected with the federal government, a state government, or a political subdivision of a state government; or
- use a title, an insignia, or an identification card or wear a uniform containing the designation "police."

d. Failure to Surrender Certain Documents

A person commits an offense if the person fails to surrender or immediately return to the department the person's commission, pocket card, or other identification issued to the person by the department under this chapter on notification of a summary suspension or summary denial. An offense under this section is a Class A misdemeanor.

e. Impersonating a Security Officer

A person commits an offense if the person impersonates a commissioned or noncommissioned security officer with the intent to induce another to submit to the person's pretended authority or to rely on the person's pretended acts of a security officer; or knowingly purports to exercise any function that requires licensure as a noncommissioned security officer or a security officer commission. An offense under this section is a Class A misdemeanor.

f. Impersonating a Private Investigator

A person impersonates a private investigator with the intent to induce another to submit to the person's pretended authority or to rely on the person's pretended acts of a private investigator or knowingly purports to exercise any function that requires licensure as a private investigator. This offense is a Class A misdemeanor, except if the defendant has been previously convicted, it is a third-degree felony.

g. Unauthorized Contract with Bail Bonds

A person commits an offense if the person contracts with or is employed by a bail bond surety as defined by TOC §1704 to secure the appearance of a person who has violated PC 38.10, unless the person is:

- a peace officer;
- an individual licensed as a private investigator; or
- a commissioned security officer employed by a licensed guard company.

An offense under this section is a state jail felony.

h. Execution of Capias or Arrest Warrant

A private investigator or commissioned security officer executing a capias or an arrest warrant on behalf of a bail bond surety may not:

- enter a residence without the consent of the occupants;
- fail to clearly identify themselves, both orally and by displaying their pocket card, as a private security officer or private investigator, as applicable, working on behalf of a bail bond surety;
- wear, carry, or display any apparel, uniform, badge, shield, or other insignia or emblem that gives the impression that the private investigator or commissioned security officer is a peace officer;
- brandish, point, exhibit, or otherwise display a firearm at any time, except as otherwise authorized by law or this chapter;

- execute the capias or warrant without written authorization from the surety; or
- notwithstanding Section 9.51, Penal Code, use deadly force.

A commissioned security officer executing a capias or arrest warrant shall:

- wear the security officer uniform issued by the employing company; and
- if armed, carry the handgun openly, in a holster.

A private investigator executing a capias or arrest warrant may not:

- wear a uniform or other apparel with the intention of creating the impression of being a security officer or peace officer; or
- openly carry a handgun, notwithstanding being licensed under Subchapter H, Chapter 411, Government Code or otherwise authorized under state law to possess a firearm.

II Vehicles

The Texas Transportation Code (TTC) defines a security patrol vehicle as a motor vehicle being used for the purpose of providing security services by:

- a guard company described by TOC §1702.108; or
- a security officer as defined by TOC §1702.002.

The TTC §547.305 limits security patrol vehicles to green, amber, or white lights. The lights on a security patrol vehicle cannot be flashing or alternating.

The licensee is responsible for ensuring the company's name, initials, uniform color and type, patches, markings on vehicles, and vehicle equipment comply with the law and do not create the impression that the security officer or guard company is connected with a law enforcement agency.

III Disciplinary Actions

Should you violate the laws surrounding the uniforms, pocket cards, or vehicles for security officers, the consequences can range from fines for a first offense to suspension or revocation of your license for further infractions. These consequences for violations are described in:

- TAC §35.14
- TAC §35.5
- TAC §35.52
- TOC §1702.387

When the Texas Department of Public Safety Regulatory Services Division receives complaints regarding private security guard uniforms and private security patrol vehicles that create the impression of being associated with law enforcement, they will investigate.

Appropriate actions will be taken if a violation is found. These actions may consist of criminal prosecution and/or administrative suspension or revocation of the license. An investigation by the department does not restrict local law enforcement from launching their own investigation and pressing charges as necessary.

4.6 Weapons

I Non-Lethal Weapons

a. Club

PC 46.03 prohibits the carrying of a club in numerous and specific places and provides limited defenses relating to the premises of a racetrack or the secured area of an airport (see (d) and (h), respectively). There is no certification specific to the carrying of clubs.

b. Chemical Dispensing Device

The carrying of a chemical dispensing device is prohibited by PC 46.05. Subsection (f) provides a defense to prosecution for security officers who have received training on the use of a chemical dispensing device that is either:

- provided by the Texas Commission on Law Enforcement (TCOLE) or
- approved by the Private Security Program.

Note: The Private Security Program has approved training on the use of a chemical dispensing device when administered to a security officer who has successfully completed the Level III training.

c. Stun Gun

Carrying a stun gun is not expressly prohibited under Texas law. Neither the Private Security Act, nor the related administrative rules, address the carrying of such a weapon by a security officer. There is no certification for the use of such weapons.

II Unlawful Carrying Weapons

There are instances where carrying a typically legal weapon is considered unlawful.

1. A person commits an offense if the person:

- a. intentionally, knowingly, or recklessly carries on or about his or her person a handgun;
- b. at the time of the offense:
 - i. is younger than 21 years of age; or
 - ii. has been convicted of an offense under Section 22.01(a)(1), 22.05, 22.07, or 42.01(a)(7) or (8) committed in the five-year period preceding the date the instant offense was committed; and
- c. is not:
 - i. on the person's own premises or premises under the person's control; or
 - ii. inside of or directly en route to a motor vehicle or watercraft that is owned by the person or under the person's control.

(a-1) A person commits an offense if the person intentionally, knowingly, or recklessly carries on or about his or her person a handgun in a motor vehicle or watercraft that is owned by the person or under the person's control at any time in which:

- a. the handgun is in plain view, unless the person is 21 years of age or older or is licensed to carry a handgun under Subchapter 411.171 Government Code, and the handgun is carried in a holster; or
- b. the person is:
 - i. (A) engaged in criminal activity, other than a Class C misdemeanor that is a violation of a law or ordinance regulating traffic or boating; or
 - ii. (B) prohibited by law from possessing a firearm.

(a-2) For purposes of this section, "premises" includes real property and a recreational vehicle that is being used as living quarters, regardless of whether that use is temporary or permanent. In this subsection, "recreational vehicle" means a motor vehicle primarily designed as temporary living quarters or a vehicle that contains temporary living quarters and is designed to be towed by a motor vehicle. The term includes a travel trailer, camping trailer, truck camper, motor home, and horse trailer with living quarters.

(a-3) For purposes of this section, "watercraft" means any boat, motorboat, vessel, or personal watercraft, other than a seaplane on water, used or capable of being used for transportation on water.

(a-4) A person commits an offense if the person:

- a. intentionally, knowingly, or recklessly carries on or about his or her person a location-restricted knife;
- b. is younger than 18 years of age at the time of the offense; and
- c. is not:
 - i. on the person's own premises or premises under the person's control;
 - ii. inside of or directly en route to a motor vehicle or watercraft that is owned by the person or under the person's control; or
 - iii. under the direct supervision of a parent or legal guardian of the person.

(a-5) A person commits an offense if the person carries a handgun and intentionally displays the handgun in plain view of another person in a public place. It is an exception to the application of this subsection that the handgun was partially or wholly visible but was carried in a holster.

(a-6) A person commits an offense if the person:

- a. carries a handgun while the person is intoxicated; and
- b. is not:
 - i. on the person's own property or property under the person's control or on private property with the consent of the owner of the property; or
 - ii. inside of or directly enroute to a motor vehicle or watercraft:
 - 1. that is owned by the person or under the person's control; or
 - 2. with the consent of the owner or operator of the vehicle or watercraft.

(a-7) A person commits an offense if the person:

- a. intentionally, knowingly, or recklessly carries on or about his or her person a handgun
- b. is not
 - i. on the person's own premises or premises under the person's control;
 - ii. inside of or directly enroute to a motor vehicle or watercraft that is owned by the person or under the person's control; and
- c. at the time of the offense, was prohibited from possessing a firearm under Section 46.04(a), (b), or (c).

III Places Weapons Prohibited

Weapons are prohibited in the following places:

- On the premises of a business that derives 51% or more of its income from the sale or service of alcoholic beverages for on- premises consumption; such premises are required to post notices under TGC §411.204;
- On the premises where a high school, collegiate, or professional sporting or interscholastic event is taking place;
- On the premises of a correctional facility;
- On the premises of a civil commitment facility;
- On the premises of a hospital or nursing home if effective notice of prohibition is given per Penal Code (PC) Chapter 30 (unless the licensee has written authorization); such premises also are required to post notices under TGC §411.204;
- On the premises of a mental hospital, as defined by Section 571.003, Health and Safety Code, unless the person has written authorization of the mental hospital administration.
- In an amusement park (if effective notice of prohibition is given per PC Chapter 30).
- On the premises of State Hospitals (in accordance with Health and Safety Code, Chapter 552, and effective notice of prohibition is given per PC Chapter 30);
- On the physical premises of a school, grounds or buildings on which an activity sponsored by a school is being conducted, or in a school transportation vehicle;
- On the premises of a polling place on the day of an election or while early voting is in progress;
- On the premises of any government court or court offices (unless the licensee has written authorization from the court);
- On the premises of a racetrack;
- In or into a secured area of an airport; or
- Within 1,000 feet of premises designated as a place of execution on the day a sentence of death is set to be imposed.

IV Required Signs Posted for License to Carry Holders

A sign posted under PC §30.06 must:

- Include the following text in English and in Spanish:

- “Pursuant to Section 30.06, Penal Code (trespass by license holder with a concealed handgun), a person licensed under Subchapter H, Chapter 411, Government Code (handgun licensing law), may not enter this property with a concealed handgun”;
- Appear in contrasting colors with block letters at least one inch in height; and
- Be displayed in a conspicuous manner clearly visible to the public.

A sign posted under PC §30.07 must:

- Include the following text in English and in Spanish:
 - “Pursuant to Section 30.07, Penal Code (trespass by license holder with an openly carried handgun), a person licensed under Subchapter H, Chapter 411, Government Code (handgun licensing law), may not enter this property with a handgun that is carried openly”;
- Appear in contrasting colors with block letters at least one inch in height; and
- be displayed in a conspicuous manner clearly visible to the public at each entrance to the property.

4.7 Denial of License and Disciplinary Actions

The Department may deny an application or revoke, suspend, or refuse to renew a license or security officer commission for conduct outlined in TOC §1702.361.

They may also reprimand a license holder or commissioned security officer or place on probation a person whose license or security officer commission has been suspended.

I Violation of Texas Occupations Code 1702

A person commits an offense if the person violates a provision of this chapter for which a specific criminal penalty is not prescribed. An offense under this section is a Class A misdemeanor, except that the offense is a felony of the third degree if the person has previously been convicted of failing to hold a license, certificate of insurance, or commission that the person is required to hold under this chapter.

II Venue

An offense under this chapter may be prosecuted in Travis County or in the county in which the offense occurred.

III Punishment in Accordance with Code

PC §12.01 states that a person adjudged guilty of an offense shall be punished in accordance with this chapter and the Code of Criminal Procedure. Penal laws enacted after the effective date of this code shall be classified for punishment purposes in accordance with this chapter. This chapter does not deprive a court of authority conferred by law to forfeit property, dissolve a corporation, suspend or cancel a license or permit, remove a person from office, cite for contempt, or impose any other civil penalty. The civil penalty may be included in the sentence.

a. Classification of Misdemeanors

Misdemeanors are classified in PC §12.03 according to the relative seriousness of the offense into three categories:

- Class A misdemeanors
- Class B misdemeanors
- Class C misdemeanors
 - Conviction of a Class C misdemeanor does not impose any legal disability or disadvantage.

Punishment and Fines for Misdemeanors

Misdemeanor punishments are outlined in PC Chapter 12 Subchapter B.

Class A

An individual adjudged guilty of a Class A misdemeanor shall be punished by: a fine not to exceed \$4,000; confinement in jail for a term not to exceed one year; or both such fine and confinement. (PC §12.21)

Class B

An individual adjudged guilty of a Class B misdemeanor shall be punished by: a fine not to exceed \$2,000; confinement in jail for a term not to exceed 180 days; or both such fine and confinement. (PC §12.22)

Class C

An individual adjudged guilty of a Class C misdemeanor shall be punished by a fine not to exceed \$500. (PC §12.23)

Felony Punishments for Misdemeanors

A person can face felony penalties depending on prior convictions, increased levels of harm or risk of harm, protected victim status, or a combination of these.

b. Enhanced Penalties

The Penal Code provides enhanced penalties for repeat misdemeanor convictions. In some instances, the law's general enhancement applies. Other misdemeanors—such as assault, theft, and family violence crimes—impose enhanced penalties for having a prior conviction for the same or similar offense. Throughout the Penal Code, certain misdemeanors carry increased penalties when the defendant targets a vulnerable or protected individual, targets a victim based on bias or prejudice, or commits the crime in a declared disaster or evacuation area. An enhanced penalty may increase the offense level or impose a mandatory minimum jail sentence.

c. Classification of Felonies

Felonies are classified in PC §12.04 according to the relative seriousness of the offense into five categories:

- capital felonies
- felonies of the first degree
- felonies of the second degree
- felonies of the third degree
- state jail felonies

d. Punishment and Fines for Felonies

Felony punishments are outlined in PC Chapter 12 Subchapter C.

Capitol Felonies

If the individual is found guilty and the state seeks the death penalty: imprisonment in the institutional division for life without the possibility of parole, or death. If the individual is found guilty and the state does not seek the death penalty: imprisonment in the institutional division for life without the possibility of parole. A sentence of life imprisonment is mandatory on conviction of the capital felony, if the individual committed the offense when younger than 18 years of age. (PC §12.31)

First Degree Felonies

A conviction for a first-degree felony can result in life imprisonment or 5 to 99 years imprisonment, as well as a fine of up to \$10,000. (PC §12.32)

Second Degree Felonies

Under Texas law, second-degree felonies are punishable by 2 to 20 years in prison and a fine of up to \$10,000. (PC §12.33)

Third Degree Felonies

A third-degree felony is punishable by 2 to 10 years imprisonment and a fine of up to \$10,000. (PC §12.34)

State Jail Felonies

In Texas, state jail felonies are punishable by 180 days to 2 years in state jail and a fine of up to \$10,000. (PC §12.35)

e. Enhanced Penalties

Repeat and Habitual Offenders

Enhanced penalties apply for repeat and habitual offenses involving, but not limited to, deadly weapons, hate crimes, offenses committed in a disaster or evacuation area, and offenses against vulnerable persons. Repeat convictions for sex offenses carry one of the harshest penalty enhancements. A defendant convicted of a second specified sex offense faces a mandatory life sentence.

Other

Certain offenses carry enhanced felony penalties of their own for repeat convictions for the same or similar offenses, such as promotion of prostitution, family violence offenses, impaired driving, and theft offenses.

Crimes committed based on bias or prejudice are increased to the next punishment level, as well as offenses committed in a declared disaster or evacuation area. Certain offenses committed in retaliation against a public servant also increase by a penalty level.

- First to Third Degree Felonies
 - For defendants facing their second felony conviction for a first, second, or third degree felony, the law increases the penalty by one degree. So, for instance, a third degree felony becomes a second degree felony. Habitual felony offenders who have two prior felony convictions face the possibility of life in jail.
- State Jail Felonies
 - A person convicted of a third state jail faces third degree felony penalties. If the two priors were for higher-level felonies, the penalty bumps up to a second degree felony.
 - State Jail Felony Punishment enhances to third degree felony if: the person used or exhibited a deadly weapon during the crime or while fleeing the crime, and the person who used or exhibited the deadly weapon or was a party to the offense knew that the deadly weapon would be used or shown; or the person has previously been convicted of

any felony under §20A.03 or §21.02, or listed in Article 42A.054, Code of Criminal Procedure or for which the judgment contains an affirmative finding under Article 42A.054, Code of Criminal Procedure.

5 Personal Communication and Conflict Resolution

5.1 Chapter Training Objective

Upon the successful completion of this module, participants will be able to demonstrate effective and professional language for resolving conflict in the field.

5.2 Chapter Outline Details

1. Recognize the basic components of interpersonal communication.
2. Outline methods for communicating professionally and effectively.
3. Describe the effects of self-awareness on communication.
4. Identify communications response strategies to more effectively interact with others.

5.3 Basic Components of Interpersonal Communication

Interpersonal communication is an exchange of information between two or more people and consists of verbal and non-verbal cues. This can encompass the transmission of ideas, information, and emotional experiences between people and/or groups.

- The three basic components and associated elements associated with interpersonal communication are:

I Orient: Sizing Up the Situation

- Position
- Posture
- Observation
- Listen

II Actions: Communicating with Others

- Respond
 - Content
 - Feeling
 - Meaning
- Ask questions

III Applications: Managing Behavior

- Handle requests

- Make requests
- Reinforce

Good interpersonal communication is the catalyst for action. Although communication is traditionally viewed as having a distinct sender and receiver of the message, it is frequently a far more complex and interactive process. Successful communications skills are achieved through cultivating active feedback; feedback occurs not just after an individual makes a statement but often during the communication itself. This can include social cues (e.g. nodding or affirmative sounds) to interjections and interruptions that occur in real-life, everyday conversations.

5.4 Methods for Professional and Effective Communication

I Sizing up the Situation

a. Positioning

Positioning allows you to put yourself in the best possible position to see and hear individuals and groups. Make sure that you maintain a safe distance while remaining close enough to see and hear what is going on. You might look for changes in routine, grouping of individuals, noise levels and expressions, and changes in physical appearance or group dynamics. The three major parts of positioning include:

1. Distancing - Should be adequate to allow for both safety and seeing/hearing a particular situation.
 - The primary goal is safety, but safety is not enough; we must also be able to see things that individuals are doing.
 - You could be safe at an officer station or in a control center; however, these designs will always create blind spots for observation, which ultimately compromises long term safety.
2. Facing the individual - When positioned in this manner, the officer is in the most effective line of sight, so that officer can observe everything he/she wants and needs to.
 - Your left shoulder should be lined up with the left boundary line of the area you are watching, while your right shoulder is lined up with the right boundary line of the area you are watching.
 - This allows you to observe the entire field of your responsibility by turning your head.
 - If the field of responsibility is too large for you to view, you will need to move around and constantly reposition yourself.

- Facing the individual helps the officer to size up the situation and react appropriately by optimizing the field of vision.
3. Looking directly - To really understand what is happening, the officer needs to look directly at a situation.
- Even if you have the correct position, and you are facing the individual(s), you will not see details of a situation unless you look directly at a group when necessary.
 - By looking directly at group of individuals, it communicates that you are not threatened by the group's presence.
 - This does not mean that you engage in a staring contest, after all, you still need to observe the larger group or facility as well.
 - Looking directly at an individual's face, is a good way to make the other party aware of your efforts to contact them.
 - Looking directly at an individual will also provide you with clues. As you develop your observational skills, you may see any of the following clues:
 - Clenched fists (a sign of aggressiveness, anger, frustration, and possibly impending violence)
 - Tightly rolled pant legs (possibility of preparing for a fight, rolling pant legs prevents the individual from tripping over the fabric)
 - An individual refusing to make eye contact (which at the very least communicates comfortability)

There is no absolute rule regarding how far or how close you position yourself. As an experienced security officer, use your experience, knowledge of the situation and/or the individuals/groups involved, and common sense to pick an appropriate distance.

b. Eye Contact

1. Direct eye contact
 - When you want an individual to know that you mean business
 - When you want to know what is going on
2. Non-direct eye contact
 - Key is to balance your eye contact so that you and the other party are both comfortable with it.

- Officers should train themselves to observe their environment by using multiple senses.
 - Listening for noises that are out of the ordinary
 - Using peripheral vision
 - Judging the atmosphere using your intuition

Note: It is always important to change the order of doing things, especially when supervising a large area or when you cannot always remain squared in one position, so that your behavior cannot be easily predicted.

c. Posturing

Posturing is holding your body in such a way that shows strength, confidence, interest, and control. When an officer appears strong and confident, others around him/her believe they are strong and confident. Good posturing includes the following:

- Standing tall - This is something that takes practice; each time you see yourself in front of a mirror, you should check your posture.
 - Are your shoulders straight?
 - Is your chest caved in or puffed out?
 - Do I look strong and confident?
- Eliminating distracting behaviors - Distracting behaviors do not communicate confidence; neither does standing still and stiff like a statue. Distracting behaviors that officers may exhibit includes:
 - Leaning against ledges or walls
 - Hands in pockets
 - Playing with keys
 - Clicking ink pens
 - Biting fingernails
 - Being too rigid
 - Exaggerated shifting
 - Not making eye contact
- Inclining slightly forward - The intention here is to communicate interest and concern by shifting your weight slightly forward. This is readily demonstrated and observed while sitting in a chair.

d. Observing

The four primary components a security officer can enlist while observing their surroundings include:

- Looking at behavior, appearance, and environment.
- Making inferences about feelings or the tone and quality of group interactions.
- Deciding if a situation is normal or abnormal.
- Deciding if a situation indicates potential for trouble or if it suggests there will be no trouble.

When observing, there are three elements that can quickly and readily be observed quickly:

- Behavior - References an action that individuals demonstrate while conscious or active and can include:
 - Playing basketball
 - Reading a book/newspaper
 - Pushing another person
 - Yelling
- Appearance - References an adjective describing a person and can include:
 - Age (e.g. old/young)
 - Race or Ethnicity
 - Gender
 - Wearing dirty clothes/uniform
- Environment - References the particular people, places, or things around the individual or group and can include:
 - Placement of the individual within the facility
 - Placement of the individual around movable objects
 - Placement of the individual near or away from security cameras/surveillance
 - Surrounded by members of a group or gang

Inferences stand the best chance of being accurate if they are based on detailed and concrete observations, rather than vague, general ones.

- Feelings - Knowing how a person or a group of people are feeling is crucial in determining the potential for problems.
 - Individuals wringing their hands, or pacing, may be interpreted as being anxious

- A group of individuals may be characterized as tense when the officer observes them tightly clustered and talking in low tones
- Relationships - This observation is more challenging because it includes the relationships between the individuals themselves, and the relationship between the individuals and the officer. Relationships are usually labeled as:
 - Neutral - The relationship is yet to be defined, usually based on a lack of familiarity or unpredictability of one parties' decision.
 - Positive - The relationship is productive and predictable based on experiences and credibility established over time.
 - Negative - The relationship is contentious based on previous experiences or a demonstrated lack of respect.
- Energy levels - This indicates a great deal about how much and what type of trouble an individual can and/or will cause. An individual's energy levels may also indicate a need for intervention.
 - Low Energy Levels
 - Displays the following characteristics:
 - Look and act defeated
 - Slow movements
 - Heads hang down
 - Behaviors exhibited are:
 - Lethargic
 - Lack of eye contact
 - High Energy levels
 - Displays the following characteristics:
 - Eagerness to participate in activities
 - Friendly and social
 - May be eager to use physical violence
 - Behaviors exhibited are:
 - Highly vocal
 - Uses a lot of hand gestures

One of the most critical things to observe regarding energy levels are fluctuations in energy levels, which may indicate trouble. To determine if a situation or individual may cause trouble, the decision

should be based on observations, behaviors, or patterns observed on shift, and the officer's knowledge of the environmental or facility conditions in general.

e. Listening

The four steps to effective listening are:

1. Suspend judgment

- This can be a difficult thing to do, especially in relation to an individual or group that you have had a previous negative encounter with.
- Most officers should attempt to overcome this by judging an individual on what they do now rather than previous interactions.
- This can be exceedingly difficult to do while listening to complaints.
- If you cannot overcome this barrier, you will not be able to hear the real-time verbal cues you need to hear that could prevent danger or assist someone.

2. Pick out key words

- Effective listening requires the listener to be able to pick out key words.
- In addition to picking out key words you should also consider the person who is involved.

3. Identify the intensity of what is said

- Statements can be made with varying levels of intensity; the louder or more emotional the statement, the more intense it is.
- Loudness and emotion are not always the same thing, for instance a quiet and low tone could still contain a lot of emotion.

4. Reflect on mood

- Reflecting on mood is a result of identifying intensity.
- One question you should ask is, "What kinds of feelings are being expressed or implied?"
- Another question, "Is this mood normal or abnormal for this time and place?"

Note: There can always be exceptions. For instance, an individual could say, "I'm going to hit you" quietly and without emotion and still mean it.

Remember, a good position will help an officer hear better. Proper posturing gives appropriate signals to the individual and will encourage him/her to speak. Observing an individual's behavior while speaking may give some cues as to the validity of what he/she is saying.

II Communicating with Others

Responding to individuals and asking questions are two pillars of communication. The use of these communication skills promotes understanding which in turns promotes a safe environment. Qualities and skills displayed by good communicators include:

- Good listener
- Genuine concern
- Not over-reacting
- Posture
- Asks questions
- Relaxed

a. Content

Identifying content while interacting and communicating with others is the skill of seeing and hearing what is really happening coupled with the ability to mirror that understanding back to the individual you are interacting with.

When thinking about content and when answering questions internally, you should always stick close to what is actually going on or what is actually being said. Examples of questions you can ask yourself include: "What is the person actually saying?" and "What is the person doing?"

When reflecting back information, you will get confirmation that you have appropriately identified the content or not. Examples of statements you may use include:

- "You are saying that you are upset...."
- "Who are you talking to?"
- "Can you tell me where/when the issue arose?"

b. Feeling

Identifying feeling is the ability to capture in words the specific feeling being experienced by an individual. Common feeling words that can be used to convey basic feelings include happy, angry, confused, sad, and scared. When identifying feelings, it is important to think about and reflect the feeling to the individual.

Thinking about Feeling

- Consider how the individual is feeling and the emotions they may be projecting. Begin the process of empathizing, which is a crucial step in building rapport with others.
- Examples:
 - What is the emotion behind what the person is saying?
 - What emotion is the person portraying with their actions?
 - Are the verbal and non-verbal emotions in conflict with each other?

Reflecting the Feeling

- Show the person that you are paying attention to their feelings; this is often more powerful than showing that you understand the content of their actions or words
- Examples:
 - “You seem excited, can you tell me what will help you in this situation?”
 - “I think you may be frustrated with the way things are going right now, is that right?”

Intensity

There are three levels of intensity for feeling that will commonly manifest in others.

- High Intensity - manifests as rage or extreme anger
- Medium Intensity - manifests as frustration or confusion
- Low Intensity - manifests as being up-tight or nervous/anxious

You may also experience these levels of intensity when interacting or responding to others on the job. It is a security officer's duty to be able to control their own personal feelings to be in the best service of self and others while protecting people and property.

c. Meaning

After mastering identifying content and identifying feeling, you can combine the two skills and effectively capture where the person is in the moment. Identifying meaning requires you to paraphrase the content of an individual's statement in such a way as to provide a meaningful reason for the person's feeling.

By putting together the content, feeling, and meaning and responding to all three, you demonstrate to the person that you have listened to their experience while demonstrating that you genuinely care and are invested in the outcome. Taking the time to effectively demonstrate the meaning is a critical step in building rapport with the others.

When you respond to the individual, an effective response will convey content, feeling, and meaning. An example of how to respond at this level includes the following:

- You feel (intensity and emotion) because (reason).
- You are saying that because (reason) that is making you feel (intensity and emotion).

Asking Questions

There are common parameters utilized among all responders when asking quality questions known as the 5 “W”s and “H” method.

- Who?
- What?
- When?
- Where?
- Why?
- How?

Think about what was said, or not said, and do your best to respond to the answer directly.

Questions can be effective in opening a conversation when used in conjunction with the basic skills of interpersonal communication and responding to observations and the things you have heard or seen.

When thinking about what was said, or not said, consider the following items:

- How does he/she look?
- What’s he/she saying?
- What did he/she say?
- What didn’t he/she say?

III Managing Behavior

When managing behavior, there are three common areas where you may have to be more direct in your communications: when handling requests, making requests, and/or reinforcing a specific behavior.

Managing behavior means taking charge; an officer’s inability to manage behavior means that all other efforts are wasted. Appropriate behavior is necessary to serve the interests of the organization/client, the facility, the individual staff member, the individual you are interacting with, and the general population present.

a. Handling Requests

Angry individuals making requests or complaints are often good at deciphering ingenuine responses. While handling these requests, it is important to maintain your humility, empathy, and compassion while still maintaining your composure and command presence. When handling complaints or requests, your primary duty is to de-escalate the situation by trying to resolve the complaint quickly and decisively.

When the company or facility utilize a complaint form or centralized office, direct the individual to the proper resource. As part of handling the request you will likely need to make requests of the individual to take further action.

b. Making Requests

Taking action means selecting the best way to make your request. Techniques include:

- Be specific
- Use mild/polite format or direct format
 - A mild format is simply a polite request: “I would appreciate it if you would...,” “Would you please...,” etc.
 - A direct format is simply to identify what you want done: “I want/need you to...”
- Get stronger in your response/tone/posture when necessary
- Use your responding skills

There may be instances where you need to soften a request to help calm or de-escalate the situation; this involves toning it down and making it more palatable to the individual(s) by putting it in the form of a request rather than a direct order; i.e., “I’d like you to stop (or please stop)...”

c. Reinforcing Behaviors

Reinforcing behaviors is the ability to administer negative and positive consequences effectively to control a person or group's behavior. This can be done positively or negatively and through the use of verbal and non-verbal techniques. Physical force should be used only when there is a threat of physical harm to you, the person, or other staff or those present in the vicinity. Escalation through force should always be used as a last resort. Always refer to department policies and procedures.

5.5 Impact of Self-Awareness on Communication

The most powerful tool you have as a security officer is the way that you communicate with others. Self-awareness involves having a clear understanding of your personality, your thoughts, emotions and ultimately your behaviors. Awareness of these behaviors and their direct or indirect impact on

communication allows you to better understand how you affect other people, how they perceive you, and how you ultimately manage your responses to them.

It can be very hard to admit to weaknesses and many individuals may deny that they have any. This results in blind spots, which are areas an individual is unable to see a problem or potential problem areas.

- Common blind spots may include:
 - Having unrealistic expectations concerning the ease of resolving issues.
 - The need to be right at all times and overly argumentative or direct in communication.
 - Being relentless resulting in unnecessary escalation of self or others around you.
 - Watch yourself in action - This involves continually examining yourself and your interactions with others. When you experience a new situation or environment, reflect on how you engaged in the encounter. Evaluate your verbal and nonverbal messages and try to identify patterns of behavior.
 - Ask how others perceive you - Others may observe strengths and areas of development in your communication and provide you with additional perspectives or potential responses. This can be close friends, trusted peers, and/or supervisors.
 - Commit to self-growth - Once an opportunity for growth is identified, take action. Employ tools, techniques, and strategies to continue working on your communication skills.

When you are cognizant of how messages affect others, you are able to self-evaluate. This allows you to monitor your appearance and how verbal and nonverbal messages are perceived in your interactions with others so that you can adjust your behavior accordingly. Sometimes, it can be easy to identify the ineffective communication patterns of others, but it can be more challenging to assess your own patterns when you are in the middle of a conversation or interaction.

Engaging in personal reflection concerning your self-awareness and enhancing your ability to self-monitor can greatly reduce the likelihood of you miscommunicating with someone, making inappropriate comments/gestures, and/or offending another person. A simple process that you can do to help you reflect on the situation or encounter to improve communication and outcomes is as follows:

- Identify the situation or encounter that you could have dealt with more efficiently or achieved a more desirable response.
- Describe the experience.
 - What happened?
 - When and where did the situation occur?

- Any other thoughts you have about the situation?
- Reflect on the experience.
 - How did you behave?
 - What thoughts did you have?
 - How did it make you feel?
 - Were there other factors that influenced the situation?
 - What have you learned from the experience?
 - What behaviors do you think might have changed the outcome?
- Plan for the future.
 - Is there anything you would do or say now to change the outcome?
 - What action(s) can you take to change similar reactions in the future?
 - What behaviors or strategies might you use in the future?

5.6 Verbal De-Escalation

It is important to develop strategies for ensuring safety in potentially problematic situations. In any conflict, you have a choice to escalate the incident further or de-escalate the situation.

Verbal de-escalation is an intervention for use with people who are showing signs of agitation and are at risk for aggression. It generally involves using calm language, along with other communication techniques, to diffuse, re-direct, or de-escalate a conflicting situation.

Signs of agitation may include:

- Raised voice
- High-pitched voice
- Rapid speech
- Pacing
- Excessive sweating
- Excessive hand gestures
- Fidgeting
- Shaking
- Balled fists
- Erratic movements
- Aggressive posture
- Verbally abusive statements

I Phases of Behavior Escalation

The escalation cycle is a widely used model that provides individuals with a toolkit of non-restrictive intervention strategies to effectively manage challenging behavior. It is important to be aware of the seven phases of the escalation cycle so that you can identify them quickly and respond with the most effective course of action when needed (Table 5.1).

Table 5.1: Phases of Behavior Escalation

Phase	Description	Focus and Intervention
Calm	This is when a person is relatively calm and cooperative and not showing any signs of aggression or distress.	- Focus on maintaining a clear, consistent environment and listening actively to build rapport and empathize with the individual. - Use open-ended questions or verbal prompts to guide the conversation and explore potential solutions together - It is also a good time to gather information.
Trigger	This occurs when an internal or external factor has triggered a person's emotional response, causing them to feel overwhelming sadness, anxiety, or distress.	- Focus on identifying the trigger and remaining calm while redirecting behavior - Try to move away from provocative situations or environments that can lead to further agitation and create opportunities for success
Agitation	Common behavior triggers include over stimulation (e.g. bright lights, loud noises.), transitions and unfamiliar tasks, people or places.	- Focus on reducing anxiety and increasing predictability - Use non-confrontational non-verbal behavior and "start", instead of "stop" directions - Break down directions into smaller steps and offer choices to help them regain a sense of control
Acceleration	This is when people often become more vocal about their emotions and start making threats towards others or themselves, be socially	- Use short phrases and allow processing time - Maintain calmness and detachment - Remain neutral and controlled, giving the person or child enough time and space to

Phase	Description	Focus and Intervention
	withdrawn and refuse to comply with requests.	process their behavior, while providing reassurance in order to help reduce tension levels • Use active listening, reflection and restatement to clarify concerns and show you understand his/her feelings
Peak	This occurs when an individual has reached a high level of emotional arousal and begins displaying more intense behaviors such as shouting, hitting or destroying property. If conflict is unresolved, it becomes the person's sole focus	• Focus on crisis intervention procedures to maintain a safe environment • Isolate individual by removing the audience and/or potential hazards and call for help/witness, if needed • Don't threaten consequences now; discuss when the person is more rational
De-Escalation	This is when an individual's behavior has escalated out of control and poses a danger to themselves or those around them. Individual may temporarily lose ability to rationally think.	• Focus on defusing immediate danger while rebuilding trust with those involved • Remove excess attention and help the individual regain composure, where possible • Allow a cool down period; look for less tense appearance, normal breathing, and willingness to comply with small requests
Recovery	This occurs when an individual comes down from the peak of their disruption and may become less hostile; may need support to process feelings afterwards.	• This is the best time for parties involved to debrief and document what happened, review procedures taken and determine the most effective solutions to avoid similar scenarios in future interactions

II Techniques

Do not get loud or yell over a screaming person. Wait until he/she takes a breath, speaking calmly at normal volume. Respond simply. Repeat if necessary. Answer informational questions, no matter how rudely asked.

Focus on maintaining the following:

- Do not be defensive
- Be honest
- Explain limits and rules
- Be respectful
- Empathize with feelings, not behaviors
- Suggest alternatives

a. Minimal Encouragers

Minimal encouragers demonstrate to the person that you are listening and paying attention, without stalling the dialogue or creating an undue interruption.

Examples include:

- Brief nonverbal expressions such as head nodding
- Simple verbal responses
 - Okay
 - Uh-huh
 - I see
 - I am listening

b. Reflections

Reflections show evidence of active listening by repeating what the person has said. These statements should be brief, without being patronizing, or interrupting the agitated person.

c. Open-ended Questions

Open-ended questions allow you to gather more information and assess whether the situation is potentially dangerous to you or others. By using phrases such as “Tell me about..” or “What do you think...” you can assess whether the person is rational and/or escalating the situation at hand.

d. Redirecting Negative Behavior

There are five overarching steps that in most cases will help you to successfully redirect negative behavior:

- Get the person talking. Respectfully opening up communication leads to the next step.
- Use empathy. This helps to activate active listening skills and supports reflection and positive interactions with the individual.

- Build rapport. Once this occurs, you can base the interaction on a mutual respect and understanding.
- Start problem solving. Sample statements include “How can you help us? We have to figure out some information and we’d love to have your cooperation. How can we work this out?”
- Engage in a resolution. This allows the pace to slow down and encourages the individual to be part of a positive outcome.

5.7 De-Escalation During a Mental Health Crisis

With increasing frequency, first responders are being called upon to engage with individuals in serious mental health crises. It is necessary for security officers to understand mental illness, and de-escalation techniques that have been proven to work most effectively when responding to individuals in these situations. These techniques can be different than those routinely taught in conflict management. Generally, the underlying elements behind mental illness-related behavior is usually not criminal or malicious.

Due to individual, environmental, cultural, and circumstantial factors, any one person might react to or perceive a crisis situation differently than another person. This might be especially true for an individual suffering from a mental illness due to the possibility of disrupted emotions or thought distortions.

Think of mental health conditions as falling along a continuum. The severity of each condition varies from person to person (mild, moderate, severe). Some individuals experience ‘chronic’ or long-term conditions, while others experience more “acute” or immediate symptoms. Those symptoms, and their severity can change; occasionally being acute, and then receding. Mental health conditions often occur simultaneously, for example, individuals often suffer from substance abuse issues in addition to other mental health conditions.

Remember that you aren’t trying to diagnose the person or resolve the underlying issues. Your top priority is to verbally defuse the situation to the best of your ability.

Consider this three-phase process:

- Safety – of the public, the subject, and the security officer.
- Stability – attempt to stabilize the person through verbal and non-verbal de-escalation skills.
- Problem solving - Try to get the person into a rational frame of mind (lessen emotional reactivity).

This increases the likelihood of future compliance and resolution

Do not rush into situations (unless necessary)! Patience can increase the safety of everyone involved. Focus on calming the situation and minimizing the level of stress

I Assessment

This quick assessment can be used in an attempt to roughly determine a subject's mental health status.

1. Level of comprehension

- Does the person understand what you're saying?
- Can the person follow instructions?
- Is person able to answer basic questions related to orientation (i.e. person, place, time)?
- When person speaks do their comments make sense related to the circumstances?
- How is the person speaking (quickly, slowly, slurred, mumbled)?

2. Behavior

- How is the person practicing basic self-care (Disheveled, dressed appropriately for season)?
- Is the person caring for hygiene (bathing)?
- When was the last time the person ate, or drank anything?
- How is the person's physical coordination?
- Compliant or non-compliant? If non-compliant could it be due to mental health issues?

3. Emotion

- What is the prevailing emotional state? (anger, sadness, euphoria, anxious)
- Is the emotional state appropriate to the context of the situation?
- Does the person exhibit quickly fluctuating emotional expressions? (laughing to crying)
- Is person exhibiting extreme or baseless suspiciousness or paranoia?
- Is person's facial expression and body language consistent with their stated mood?

Do not rush the person or crowd his personal space. Any attempt to force an issue may quickly backfire in the form of violence.

They may be waving their fists, or a knife, or yelling. If the situation is secure, and if no one can be accidentally harmed by the individual, you should adopt a non-threatening, nonconfrontational stance with the subject.

Excessively emotional or even violent outbursts by those with mental illness are often of short duration. It is better to let the outburst dissipate rather than wrestle with a person who is under extreme emotional stress. Bizarre behavior alone is not reason for physical force.

What works best and what is most beneficial is patience and communication. The tone and outcome of a subject interaction are almost always impacted by the degree to which a security officer can build rapport with the subject(s).

II Building Rapport

Rapport is defined as “a friendly, harmonious relationship; especially a relationship characterized by agreement, mutual understanding, or empathy that makes communication possible or easy”. Synonyms for rapport include “communion or fellowship” (Merriam Webster, 2017). The degree of rapport can often determine the course of the interaction (positive or negative).

Tactics for gaining trust and building rapport:

- Honesty and sincerity are essential for rapport and trust.
- Individuals suffering from mental health issues can be very attuned to nuances of communication (dismissiveness, ulterior motives, condescension, non-verbal cues, labeling).
- Use the person’s name (the name that they prefer to be called).
- Be patient and try to match their conversational speed.
- Maintain a calm tone of voice.
- Do not minimize or discount the subject’s point of view.

Make sure that you validate the positive things that the person has done while you have been talking. Gain confidence by forewarning that certain things may take place. For example: “You have been very straightforward with me, and I am going to be straightforward with you. You are going to have to be handcuffed when you ride in the car, for your safety, and for mine.”

In addition, maintain good eye contact (but not confrontational or unending eye contact), minimize distractions, do not interrupt while the person is speaking, validate and empathize, use engaged body language (lean forward into the conversation, or nod). Remember, it’s not what you say, but how you say it.

Non-Verbal Communication (PERF, 2016).

- Friendly and helpful – behaviors that convey safety, respect, and a desire to help. Can be conveyed verbally, and nonverbally (through neutral body language, and pleasant facial expression).
- Aggressive and hostile – behaviors that communicate a distance from or even a danger to another individual (blading, hand on grip of pistol).
- Ambiguous – These behaviors are open to interpretation and can have a wide range of meanings to individuals in crisis. Often if the posture is not overtly friendly, it is interpreted as dangerous.

Remember that you aren't trying to diagnose the person or resolve the underlying issues. Your top priority is to verbally defuse the situation to the best of your ability. People in crisis may not be able to understand your statements or commands but can often read your non-verbal cues and sense your level of concern, empathy, investment, and genuineness.

5.8 Activity: Communication Scenarios

I Purpose

The purpose of this activity is for participants to identify communication response strategies to more effectively interact with others.

II Participant Directions

1. Work through Worksheet 1 according to the instructor's directions.
2. When prompted by the instructor, discuss your answers to the scenarios.

III Scenario 1 – Airport

You are a security officer at the Dallas/Fort Worth Airport in a mobile position. In this position you walk around the facility and you have a radio on your hip. A woman approaches you frantic and shouting, "How do I get to Gate E from here?!" What are proper responses in this case? Write your answers below.

IV Scenario 2 – Concert

You are working as a security officer at a music festival in Houston and the crowd of over 50,000 people surges toward the stage. In the process, multiple died and hundreds were injured. Video has circulated online of members of the crowd screaming out to employees of the festival for help. How would you handle this situation? Write your answers below.

V Scenario 3 – Office Building

You are working as a security officer at an office building. A member of the public arrives saying that he has an appointment with a staff member. The gentleman has a handgun in a holster at his hip and has a young child with him. You explain that the owners of the building do not allow firearms inside and show the man that the proper signage is posted. He becomes excessively argumentative. How would you handle this situation? Write your answers below.

5.9 References

- “Critical Decision-Making Model,” Standard 2, De-Escalation Mandate Abstract Update 12-18, December 2018 edition, Austin, TX: Texas Commission on Law Enforcement, 2018, 4—5.
- “Introduction,” Standard 1, De-Escalation Mandate Abstract Update 12-18, December 2018 edition, Austin, TX: Texas Commission on Law Enforcement, 2018, 4.
- “Crisis Intervention Training (CIT),” Texas Commission on Law Enforcement (TCOLE), Prepared by Celesta Harris, Ph.D., Sergeant Robyn Wilson, MHO,MSP, Updated March 2021.

6 Use of Force

6.1 Chapter Training Objective

Upon successful completion of this module, participants will be able to recognize appropriate responses to incidents using the Use of Force Continuum.

6.2 Chapter Outline Details

1. Recognize applicable statutes concerning use of force.
2. Describe how a security officer implements the use of force.
3. Identify elements of the Dynamic Resistance Model.

6.3 Code of Criminal Procedures

CCP Art. 14.01. OFFENSE WITHIN VIEW.

(a) A peace officer **or any other person**, may, without a warrant, arrest an offender when the offense is committed in his presence or within his view, **if the offense is one classed as a felony or as an offense against the public peace.**

(b) A peace officer may arrest an offender without a warrant for any offense committed in his presence or within his view.

6.4 Penal Code

I General Principles of Criminal Responsibility

PC §6.01 Requirement of Voluntary Act or Omission

A person commits an offense only if he voluntarily engages in conduct, including an act, an omission, or possession.

Possession is a voluntary act if the possessor knowingly obtains or receives the thing possessed or is aware of his control of the thing for a sufficient time to permit him to terminate his control.

A person who omits to perform an act does not commit an offense unless a law provides that the omission is an offense or otherwise provides that he has a duty to perform the act.

PC §6.02 Requirements of Culpability

A person does not commit an offense unless he intentionally, knowingly, recklessly, or with criminal negligence engages in conduct as the definition of the offense requires.

If the definition of an offense does not prescribe a culpable mental state, a culpable mental state is nevertheless required unless the definition plainly dispenses with any mental element.

If the definition of an offense does not prescribe a culpable mental state, but one is nevertheless required under Subsection (b), intent, knowledge, or recklessness suffices to establish criminal responsibility.

Culpable mental states are classified according to relative degrees, from highest to lowest, as follows:

- intentional;
- knowing;
- reckless;
- criminal negligence

Proof of a higher degree of culpability than that charged constitutes proof of the culpability charged. An offense defined by municipal ordinance or by order of a county commissioners court may not dispense with the requirement of a culpable mental state if the offense is punishable by a fine exceeding the amount authorized by Section PC §12.23.

PC §6.04 Causation: Conduct and Results

A person is criminally responsible if the result would not have occurred but for his conduct, operating either alone or concurrently with another cause, unless the concurrent cause was clearly sufficient to produce the result and the conduct of the actor clearly insufficient.

A person is nevertheless criminally responsible for causing a result if the only difference between what actually occurred and what he desired, contemplated, or risked is that:

- a different offense was committed; or
- a different person or property was injured, harmed, or otherwise affected.

6.5 PC §22.01 Assault

An individual commits assault if they intentionally, knowingly, or recklessly:

- Cause bodily injury to another including the person's spouse Class A Misdemeanor
- threaten imminent bodily injury to another including the person's spouse Class B Misdemeanor
- cause physical contact with another including the person's spouse, while knowing or should reasonably believe the action will be seen as provocative or offensive Class C Misdemeanor.

6.6 PC §37.08 False Report to a Peace Officer, or Law Enforcement Employee

A person commits an offense if, with intent to deceive, he knowingly makes a false statement that is material to a criminal investigation and makes the statement to:

- a peace officer or federal special investigator conducting the investigation;
- any employee of a law enforcement agency that is authorized by the agency to conduct the investigation and that the actor knows is conducting the investigation; or
- a corrections officer or jailer. An offense under this section is a Class B misdemeanor.

6.7 PC §20.01 Restrain Definition

Restrain means to restrict a person's movements without consent, so as to interfere substantially with the person's liberty, by moving the person from one place to another or by confining the person. Restraint is "without consent" if it is accomplished by:

- force, intimidation, or deception; or
- any means, including acquiescence of the victim, if:
 - the victim is a child who is less than 14 years of age or an incompetent person and the parent, guardian, or person or institution acting in loco parentis has not acquiesced in the movement or confinement; or
 - the victim is a child who is 14 years of age or older and younger than 17 years of age, the victim is taken outside of the state and outside a 120-mile radius from the victim's residence, and the parent, guardian, or person or institution acting in loco parentis has not acquiesced in the movement.

6.8 PC §20.02 Unlawful Restraint

A person commits an offense if he intentionally or knowingly restrains another person. It is an affirmative defense to prosecution under this section that:

- the person restrained was a child younger than 14 years of age;
- the actor was a relative of the child; and
- the actor's sole intent was to assume lawful control of the child.

An offense under this section is a Class A misdemeanor, except that the offense is:

- a state jail felony if the person restrained was a child younger than 17 years of age;
- a felony of the third degree if:
 - the actor recklessly exposes the victim to a substantial risk of serious bodily injury;

- the actor restrains an individual the actor knows is a public servant while the public servant is lawfully discharging an official duty or in retaliation or on account of an exercise of official power or performance of an official duty as a public servant; or
- a felony of the second degree if the actor restrains an individual the actor knows is a peace officer or judge while the officer or judge is lawfully discharging an official duty or in retaliation or on account of an exercise of official power or performance of an official duty as a peace officer or judge.

It is no offense to detain or move another under this section when it is for the purpose of effecting a lawful arrest or detaining an individual lawfully arrested. It is an affirmative defense to prosecution under this section that:

- the person restrained was a child who is 14 years of age or older and younger than 17 years of age;
- the actor does not restrain the child by force, intimidation, or deception; and
- the actor is not more than three years older than the child.

6.9 PC §20.03 Kidnapping

A person commits an offense if he intentionally or knowingly abducts another person.

6.10 PC §31.03 Theft

A person commits an offense if he unlawfully appropriates property with intent to deprive the owner of property.

6.11 PC §42.01 Disorderly Conduct

A person commits an offense if he intentionally or knowingly:

- uses abusive, indecent, profane, or vulgar language in a public place, and the language by its very utterance tends to incite an immediate breach of the peace;
- makes an offensive gesture or display in a public place, and the gesture or display tends to incite an immediate breach of the peace;
- creates, by chemical means, a noxious and unreasonable odor in a public place;
- abuses or threatens a person in a public place in an obviously offensive manner;
- makes unreasonable noise in a public place other than a sport shooting range, as defined by Section 250.001, Local Government Code, or in or near a private residence that he has no right to occupy;
- fights with another in a public place;
- discharges a firearm in a public place other than a public road or a sport shooting range, as defined by Section 250.001, Local Government Code;

- displays a firearm or other deadly weapon in a public place in a manner calculated to alarm;
- discharges a firearm on or across a public road;
- exposes his anus or genitals in a public place and is reckless about whether another may be present who will be offended or alarmed by his act; or
- for a lewd or unlawful purpose:
 - enters on the property of another and looks into a dwelling on the property through any window or other opening in the dwelling;
 - while on the premises of a hotel or comparable establishment, looks into a guest room not the person's own through a window or other opening in the room; or
 - while on the premises of a public place, looks into an area such as a restroom or shower stall or changing or dressing room that is designed to provide privacy to a person using the area.

Note: The term “public place” includes a public school campus or the school grounds on which a public school is located.

It is a defense to prosecution under that the actor had significant provocation for his abusive or threatening conduct. For purposes of this section:

- an act is deemed to occur in a public place or near a private residence if it produces its offensive or proscribed consequences in the public place or near a private residence; and
- a noise is presumed to be unreasonable if the noise exceeds a decibel level of 85 after the person making the noise receives notice from a magistrate or peace officer that the noise is a public nuisance.

An offense under this section is a Class C misdemeanor unless committed under Subsection (a)(7) or (a)(8), in which event it is a Class B misdemeanor.

It is a defense to prosecution for an offense under Subsection (a)(7) or (9) that the person who discharged the firearm had a reasonable fear of bodily injury to the person or to another by a dangerous wild animal as defined by Section 822.101, Health and Safety Code.

Subsections (a)(1), (2), (3), (5), and (6) do not apply to a person who, at the time the person engaged in conduct prohibited under the applicable subdivision, was a student younger than 12 years of age, and the prohibited conduct occurred at a public-school campus during regular school hours.

6.12 PC §42.07 Harassment

A person commits an offense if, with intent to harass, annoy, alarm, abuse, torment, or embarrass another, the person:

- initiates communication and in the course of the communication makes a comment, request, suggestion, or proposal that is obscene;
- threatens, in a manner reasonably likely to alarm the person receiving the threat, to inflict bodily injury on the person or to commit a felony against the person, a member of the person's family or household, or the person's property;
- conveys, in a manner reasonably likely to alarm the person receiving the report, a false report, which is known by the conveyor to be false, that another person has suffered death or serious bodily injury;
- causes the telephone of another to ring repeatedly or makes repeated telephone communications anonymously or in a manner reasonably likely to harass, annoy, alarm, abuse, torment, embarrass, or offend another;
- makes a telephone call and intentionally fails to hang up or disengage the connection;
- knowingly permits a telephone under the person's control to be used by another to commit an offense under this section; or
- sends repeated electronic communications in a manner reasonably likely to harass, annoy, alarm, abuse, torment, embarrass, or offend another.

In this section “electronic communication” means a transfer of signs, signals, writing, images, sounds, data, or intelligence of any nature transmitted in whole or in part by a wire, radio, electromagnetic, photoelectronic, or photo-optical system. The term includes:

- a communication initiated through the use of electronic mail, instant message, network call, a cellular or other type of telephone, a computer, a camera, text message, a social media platform or application, an Internet website, any other Internet-based communication tool, or facsimile machine; and
- a communication made to a pager.

“Family” and “household” have the meaning assigned by Chapter 71, Family Code. “Obscene” means containing a patently offensive description of or a solicitation to commit an ultimate sex act, including sexual intercourse, masturbation, cunnilingus, fellatio, or anilingus, or a description of an excretory function.

An offense under this section is a Class B misdemeanor, except that the offense is a Class A misdemeanor if the actor has previously been convicted under this section, or the offense was committed under Subsection (a)(7) and:

- the offense was committed against a child under 18 years of age with the intent that the child:
 - commit suicide; or
 - engage in conduct causing serious bodily injury to the child; or
- the actor has previously violated a temporary restraining order or injunction issued under Chapter 129A, Civil Practice and Remedies Code.

6.13 PC §42.072 Stalking

A person commits an offense if the person, on more than one occasion and pursuant to the same scheme or course of conduct that is directed specifically at another person, knowingly engages in conduct that:

- constitutes an offense under Section 42.07, or that the actor knows or reasonably should know the other person will regard as threatening:
 - bodily injury or death for the other person;
 - bodily injury or death for a member of the other person's family or household or for an individual with whom the other person has a dating relationship; or
 - that an offense will be committed against the other person's property;
- causes the other person, a member of the other person's family or household, or an individual with whom the other person has a dating relationship to be placed in fear of bodily injury or death or in fear that an offense will be committed against the other person's property, or to feel harassed, annoyed, alarmed, abused, tormented, embarrassed, or offended; and
- would cause a reasonable person to:
 - fear bodily injury or death for himself or herself;
 - fear bodily injury or death for a member of the person's family or household or for an individual with whom the person has a dating relationship;
 - fear that an offense will be committed against the person's property; or
 - feel harassed, annoyed, alarmed, abused, tormented, embarrassed, or offended.

An offense under this section is a felony of the third degree, except that the offense is a felony of the second degree if the actor has previously been convicted of an offense under this section or of an offense under any of the following laws that contains elements that are substantially similar to the elements of an offense under this section:

- the laws of another state;

- the laws of a federally recognized Indian tribe;
- the laws of a territory of the United States; or
- federal law.

For purposes of this section, a trier of fact may find that different types of conduct described by Subsection (a), if engaged in on more than one occasion, constitute conduct that is engaged in pursuant to the same scheme or course of conduct.

In this section “dating relationship,” “family,” “household,” and “member of a household” have the meanings assigned by Chapter 71, Family Code. “Property” includes a pet, companion animal, or assistance animal, as defined by Section 121.002, Human Resources Code.

6.14 Penal Code Chapter 9

Chapter 9 Justification Excluding Criminal Responsibility of the Texas Penal Code discusses the following:

- Protection of Persons
- Protection of Property
- Arrest and Search

I Protection of Persons

a. Sec. 9.02. Justification as a Defense

It is a defense to prosecution that the conduct in question is justified under this chapter.

b. Sec. 9.05. Reckless Injury of Innocent Third Person

Even though an actor is justified under this chapter in threatening or using force or deadly force against another, if in doing so he also recklessly injures or kills an innocent third person, the justification afforded by this chapter is unavailable in a prosecution for the reckless injury or killing of the innocent third person.

Note: If the courts declare you are justified in using deadly force if you injure or kill an innocent bystander, you are held responsible for the bystander. If you get into a fight with a subject and are rolling around on the floor and kick someone while fighting with a subject, you could be held responsible criminally and civilly for the other person’s injury.

c. Sec. 9.06. Civil Remedies Unaffected

The fact that conduct is justified under this chapter does not abolish or impair any remedy for the conduct that is available in a civil suit.

Note: Just because you are not criminally responsible does not mean you cannot be held accountable civilly. This is important to remember in your interactions.

d. Sec. 9.31. Self-Defense

A person is justified in using force against another when and to the degree the actor reasonably believes the force is immediately necessary to protect the actor against the other's use or attempted use of unlawful force. The actor's belief that the force was immediately necessary as described by this subsection is presumed to be reasonable if the actor:

- knew or had reason to believe that the person against whom the force was used:
 - unlawfully and with force entered, or was attempting to enter unlawfully and with force, the actor's occupied habitation, vehicle, or place of business or employment;
 - unlawfully and with force removed, or was attempting to remove unlawfully and with force, the actor from the actor's habitation, vehicle, or place of business or employment; or
 - was committing or attempting to commit aggravated kidnapping, murder, sexual assault, aggravated sexual assault, robbery, or aggravated robbery;
- did not provoke the person against whom the force was used; and
- was not otherwise engaged in criminal activity, other than a Class C misdemeanor that is a violation of a law or ordinance regulating traffic at the time the force was used.

Note: You cannot strike someone for verbally provoking you and claim self-defense.

e. Deadly Force in Defense of Person

A person is justified in using deadly force against another:

- If the actor would be justified in using force against the other under Section 9.31; and
- When and to the degree the actor reasonably believes the deadly force is immediately necessary:
 - To protect the actor against the others use or attempted use of unlawful deadly force; or
 - To prevent the other's imminent commission of aggravated kidnapping, murder, sexual assault, aggravated sexual assault, robbery, or aggravated robbery.

The actor's belief that the deadly force was immediately necessary as described is presumed to be reasonable if the actor:

- Knew or had reason to believe that the person against whom the deadly force was used

- Unlawfully and with force entered, or was attempting to enter unlawfully and with force, the actor's occupied habitation, vehicle, or place of business or employment;
- Unlawfully and with force removed, or was attempting to remove unlawfully and with force, the actor from the actor's habitation, vehicle, or place of business or employment; or
- Did not provoke the person against whom the force was used; and
- Was not otherwise engaged in criminal activity, other than a Class C misdemeanor that is a violation of a law or ordinance regulating traffic at the time the force was used.

A person who has a right to be present at the location where the deadly force is used, who has not provoked the person against whom the deadly force is used, and who is not engaged in criminal activity at the time the deadly force is used, is not required to retreat before using deadly force as described by this section.

In determining whether an actor reasonably believed that the use of deadly force was necessary, a finder of fact may not consider whether the actor failed to retreat.

Note: It is possible to follow this correctly and still face consequences. If deadly force is justified and a court finds your actions necessary, that does not mean that you cannot and will not be held civilly.

f. Sec. 9.33. Defense of a Third Person

A person is justified in using force or deadly force against another to protect a third person if:

- under the circumstances as the actor reasonably believes them to be, the actor would be justified under Section 9.31 or 9.32 in using force or deadly force to protect himself against the unlawful force or unlawful deadly force he reasonably believes to be threatening the third person he seeks to protect; and
- the actor reasonably believes that his intervention is immediately necessary to protect the third person.

Note: Do not confuse this statute with the authority a citizen has to arrest. A citizen's arrest is allowed when the following occur: felony occurs within your view or a breach of the peace.

g. Sec. 9.34 Protection of Life or Health

A person is justified in using force, but not deadly force, against another when and to the degree he reasonably believes the force is immediately necessary to prevent the other from committing suicide or inflicting serious bodily injury to himself.

Note: An example of this would be tackling someone away from the edge of a bridge in order to prevent them from jumping.

A person is justified in using both force and deadly force against another when and to the degree he reasonably believes the force or deadly force is immediately necessary to preserve the other's life in an emergency.

Note: An example of the application for this would be if you observe a person beating on another person causing serious bodily injury or possibly attempting to kill the other person. At that point you may use force to preserve the life of the other person. If you do not act immediately, a person could lose their life or suffer serious bodily injuries.

II Protection of Property

a. Sec. 9.41 Protection of One's Own Property

A person in lawful possession of land or tangible, movable property is justified in using force against another when and to the degree the actor reasonably believes the force is immediately necessary to prevent or terminate the other's trespass on the land or unlawful interference with the property.

A person unlawfully dispossessed of land or tangible, movable property by another is justified in using force against the other when and to the degree the actor reasonably believes the force is immediately necessary to reenter the land or recover the property if the actor uses the force immediately or in fresh pursuit after the dispossession and:

- the actor reasonably believes the other had no claim of right when he dispossessed the actor; or
- the other accomplished the dispossession by using force, threat, or fraud against the actor.

b. Sec. 9.42 Deadly Force to Protect Property

A person is justified in using deadly force against another to protect land or tangible, movable property:

- if he would be justified in using force against the other under Section 9.41; and
- when and to the degree he reasonably believes the deadly force is immediately necessary:

- to prevent the other's imminent commission of arson, burglary, robbery, aggravated robbery, theft during the nighttime, or criminal mischief during the nighttime;
 - or
- to prevent the other who is fleeing immediately after committing burglary, robbery, aggravated robbery, or theft during the nighttime from escaping with the property; and
- he reasonably believes that:
 - the land or property cannot be protected or recovered by any other means; or
 - the use of force other than deadly force to protect or recover the land or property would expose the actor or another to a substantial risk of death or serious bodily injury.

Note: In this event, local law enforcement should have been notified before deadly force becomes necessary. After their arrival, the main responsibility of the level II non-commissioned security officer is to observe and report.

c. **Sec. 9.43 Protection of Third Person's Property**

A person is justified in using force or deadly force against another to protect land or tangible, movable property of a third person if, under the circumstances as he reasonably believes them to be, the actor would be justified under Section 9.41 or 9.42 in using force or deadly force to protect his own land or property and:

- the actor reasonably believes the unlawful interference constitutes attempted or consummated theft of or criminal mischief to the tangible, movable property; or
- the actor reasonably believes that:
 - the third person has requested his protection of the land or property;
 - he has a legal duty to protect the third person's land or property; or
 - the third person whose land or property he uses force or deadly force to protect is the actor's spouse, parent, or child, resides with the actor, or is under the actor's care.

Note: As a non-commissioned security officer, your main responsibility is to observe and report. You are not authorized to use weapons so you must always remember safety comes first. Remember to contact your local law enforcement agency immediately if something does not seem right.

d. **Sec. 9.44 Use of Device to Protect Property**

The justification afforded by Sections 9.41 and 9.43 applies to the use of a device to protect land or tangible, movable property if:

- the device is not designed to cause, or known by the actor to create a substantial risk of causing, death or serious bodily injury; and
- use of the device is reasonable under all the circumstances as the actor reasonably believes them to be when he installs the device.

Note: An example of this that you are likely to encounter is a spike strip used to stop vehicles from entering an area.

III Arrest and Search

a. Sec. 9.51. Arrest and Search

(a) A peace officer, or a person acting in a peace officer's presence and at his direction, is justified in using force against another when and to the degree the actor reasonably believes the force is immediately necessary to make or assist in making an arrest or search, or to prevent or assist in preventing escape after arrest, if:

- the actor reasonably believes the arrest or search is lawful or, if the arrest or search is made under a warrant, he reasonably believes the warrant is valid; and
- before using force, the actor manifests his purpose to arrest or search and identifies himself as a peace officer or as one, acting at a peace officer's direction, unless he reasonably believes his purpose and identity are already known by or cannot reasonably be made known to the person to be arrested.

(b) A person other than a peace officer (or one acting at his direction) is justified in using force against another when and to the degree the actor reasonably believes the force is immediately necessary to make or assist in making a lawful arrest, or to prevent or assist in preventing escape after lawful arrest if, before using force, the actor manifests his purpose to and the reason for the arrest or reasonably believes his purpose and the reason are already known by or cannot reasonably be made known to the person to be arrested.

(c) A peace officer is justified in using deadly force against another when and to the degree the peace officer reasonably believes the deadly force is immediately necessary to make an arrest, or to prevent escape after arrest, if the use of force would have been justified under Subsection (a) and:

- the actor reasonably believes the conduct for which arrest is authorized included the use or attempted use of deadly force; or
- the actor reasonably believes there is a substantial risk that the person to be arrested will cause death or serious bodily injury to the actor or another if the arrest is delayed.

(d) A person other than a peace officer acting in a peace officer's presence and at his direction is justified in using deadly force against another when and to the degree the person reasonably believes the deadly force is immediately necessary to make a lawful arrest, or to prevent escape after a lawful arrest, if the use of force would have been justified under Subsection (b) and:

- the actor reasonably believes the felony or offense against the public peace for which arrest is authorized included the use or attempted use of deadly force; or
- the actor reasonably believes there is a substantial risk that the person to be arrested will cause death or serious bodily injury to another if the arrest is delayed.

(e) There is no duty to retreat before using deadly force justified by Subsection (c) or (d).

(f) Nothing in this section relating to the actor's manifestation of purpose or identity shall be construed as conflicting with any other law relating to the issuance, service, and execution of an arrest or search warrant either under the laws of this state or the United States.

(g) Deadly force may only be used under the circumstances enumerated in Subsections (c) and (d).

6.15 Penal Code Chapter 46

I Sec. 46.02. Unlawful Carrying Weapons

(a) A person commits an offense if the person:

- (1) intentionally, knowingly, or recklessly carries on or about his or her person a handgun;
- (2) at the time of the offense:
 - (A) is younger than 21 years of age; or
 - (B) has been convicted of an offense under Section 22.01(a)(1), 22.05, 22.07, or 42.01(a)(7) or (8) committed in the five-year period preceding the date the instant offense was committed; and
- (3) is not:
 - (A) on the person's own premises or premises under the person's control; or
 - (B) inside of or directly en route to a motor vehicle or watercraft that is owned by the person or under the person's control.

(a-1) person commits an offense if the person intentionally, knowingly, or recklessly carries on or about his or her person a handgun in a motor vehicle or watercraft that is owned by the person or under the person's control at any time in which:

- (1) the handgun is in plain view, unless the person is 21 years of age or older or is licensed to carry a handgun under Subchapter H, Chapter 411, Government Code, and the handgun is carried in a holster; or
- (2) the person is:
 - (A) engaged in criminal activity, other than a Class C misdemeanor that is a violation of a law or ordinance regulating traffic or boating; or
 - (B) prohibited by law from possessing a firearm.

(a-2) For purposes of this section, “premises” includes real property and a recreational vehicle that is being used as living quarters, regardless of whether that use is temporary or permanent. In this subsection, “recreational vehicle” means a motor vehicle primarily designed as temporary living quarters or a vehicle that contains temporary living quarters and is designed to be towed by a motor vehicle. The term includes a travel trailer, camping trailer, truck camper, motor home, and horse trailer with living quarters.

(a-3) For purposes of this section, “watercraft” means any boat, motorboat, vessel, or personal watercraft, other than a seaplane on water, used or capable of being used for transportation on water.

(a-4) person commits an offense if the person:

- (1) intentionally, knowingly, or recklessly carries on or about his or her person a location-restricted knife;
- (2) is younger than 18 years of age at the time of the offense; and
- (3) is not:
 - (A) on the person’s own premises or premises under the person’s control;
 - (B) inside of or directly en route to a motor vehicle or watercraft that is owned by the person or under the person’s control; or
 - (C) under the direct supervision of a parent or legal guardian of the person.

(a-5) person commits an offense if the person carries a handgun and intentionally displays the handgun in plain view of another person in a public place. It is an exception to the application of this subsection that the handgun was partially or wholly visible but was carried in a holster.

(a-6) person commits an offense if the person:

- (1) carries a handgun while the person is intoxicated; and
- (2) is not:
 - (A) on the person's own property or property under the person's control or on private property with the consent of the owner of the property; or
 - (B) inside of or directly en route to a motor vehicle or watercraft:
 - (i) that is owned by the person or under the person's control; or
 - (ii) with the consent of the owner or operator of the vehicle or watercraft.

(a-7) person commits an offense if the person:

- (1) intentionally, knowingly, or recklessly carries on or about his or her person a handgun;
- (2) is not:
 - (A) on the person's own premises or premises under the person's control; or
 - (B) inside of or directly en route to a motor vehicle or watercraft that is owned by the person or under the person's control; and
- (3) at the time of the offense, was prohibited from possessing a firearm under Section 46.04(a), (b), or (c).

(a-8) If conduct constituting an offense under Subsection (a-7) constitutes an offense under another provision of law, the actor may be prosecuted under Subsection (a-7) or under both provisions.

- (b) Except as provided by Subsection (d) or (e), an offense under this section is a Class A misdemeanor.
- (c) Repealed by Acts 2021, 87th Leg., R.S., Ch. 809 (H.B. 1927), Sec. 26(8), eff. September 1, 2021.
- (d) An offense under Subsection (a-4) is a Class C misdemeanor. An offense under Subsection (a-7) is:
 - (1) a felony of the second degree with a minimum term of imprisonment of five years, if the actor was prohibited from possessing a firearm under Section 46.04(a); or
 - (2) a felony of the third degree, if the actor was prohibited from possessing a firearm under Section 46.04(b) or (c).

II **Sec. 46.03. Places Weapons Prohibited**

- (a) person commits an offense if the person intentionally, knowingly, or recklessly possesses or goes with a firearm, location-restricted knife, club, or prohibited weapon listed in Section 46.05(a):
 - (1) on the physical premises of a school or educational institution, any grounds or building on which an activity sponsored by a school or educational institution is being conducted, or a passenger transportation vehicle of a school or educational institution, whether the school or educational institution is public or private, unless:
 - (A) pursuant to written regulations or written authorization of the institution; or
 - (B) the person possesses or goes with a concealed handgun that the person is licensed to carry under Subchapter H, Chapter 411, Government Code, and no other weapon to which this section applies, on the premises of an institution of higher education or private or independent institution of higher education, on any grounds or building on which an activity sponsored by the institution is being conducted, or in a passenger transportation vehicle of the institution;
 - (2) on the premises of a polling place on the day of an election or while early voting is in progress;
 - (3) on the premises of any government court or offices utilized by the court, unless pursuant to written regulations or written authorization of the court;
 - (4) on the premises of a racetrack;
 - (5) in or into a secured area of an airport;
 - (6) within 1,000 feet of premises the location of which is designated by the Texas Department of Criminal Justice as a place of execution under Article 43.19, Code of Criminal Procedure, on a day that a sentence of death is set to be imposed on the designated premises and the person received notice that:
 - (A) going within 1,000 feet of the premises with a weapon listed under this subsection was prohibited; or
 - (B) possessing a weapon listed under this subsection within 1,000 feet of the premises was prohibited;
 - (7) on the premises of a business that has a permit or license issued under Chapter 25, 28, 32, 69, or 74, Alcoholic Beverage Code, if the business derives 51 percent or more of its income from the sale or service of alcoholic beverages for on-premises consumption, as determined by the Texas Alcoholic Beverage Commission under Section 104.06, Alcoholic Beverage Code;
 - (8) on the premises where a high school, collegiate, or professional sporting event or interscholastic event is taking place, unless the person is a participant in the event and a firearm, location-restricted knife, club, or prohibited weapon listed in Section 46.05(a) is used in the event;
 - (9) on the premises of a correctional facility;

- (10) on the premises of a civil commitment facility;
- (11) on the premises of a hospital licensed under Chapter 241, Health and Safety Code, or on the premises of a nursing facility licensed under Chapter 242, Health and Safety Code, unless the person has written authorization of the hospital or nursing facility administration, as appropriate;
- (12) on the premises of a mental hospital, as defined by Section 571.003, Health and Safety Code, unless the person has written authorization of the mental hospital administration;
- (13) in an amusement park; or
- (14) in the room or rooms where a meeting of a governmental entity is held, if the meeting is an open meeting subject to Chapter 551, Government Code, and if the entity provided notice as required by that chapter.

(a-1) Repealed by Acts 2021, 87th Leg., R.S., Ch. 809 (H.B. 1927), Sec. 26(9), eff. September 1, 2021.

(a-2) Notwithstanding Section 46.02(a-5), a license holder commits an offense if the license holder carries a partially or wholly visible handgun, regardless of whether the handgun is holstered, on or about the license holder's person under the authority of Subchapter H, Chapter 411, Government Code, and intentionally or knowingly displays the handgun in plain view of another person:

- (1) on the premises of an institution of higher education or private or independent institution of higher education; or
- (2) on any public or private driveway, street, sidewalk or walkway, parking lot, parking garage, or other parking area of an institution of higher education or private or independent institution of higher education.

(a-3) Notwithstanding Subsection (a) or Section 46.02(a-5), a license holder commits an offense if the license holder carries a handgun on the campus of a private or independent institution of higher education in this state that has established rules, regulations, or other provisions prohibiting license holders from carrying handguns pursuant to Section 411.2031(e), Government Code, or on the grounds or building on which an activity sponsored by such an institution is being conducted, or in a passenger transportation vehicle of such an institution, regardless of whether the handgun is concealed, provided the institution gives effective notice under Section 30.06.

(a-4) Notwithstanding Subsection (a) or Section 46.02(a-5), a license holder commits an offense if the license holder intentionally carries a concealed handgun on a portion of a premises located on the campus of an institution of higher education in this state on which the carrying of a concealed handgun is prohibited by rules, regulations, or other provisions established under Section 411.2031(d-1),

Government Code, provided the institution gives effective notice under Section 30.06 with respect to that portion.

(b) It is a defense to prosecution under Subsections (a)(1)-(4) that the actor possessed a firearm while in the actual discharge of his official duties as a member of the armed forces or national guard or a guard employed by a penal institution, or an officer of the court.

(c) In this section:

(1) “Amusement park” means a permanent indoor or outdoor facility or park where amusement rides are available for use by the public that is located in a county with a population of more than one million, encompasses at least 75 acres in surface area, is enclosed with access only through controlled entries, is open for operation more than 120 days in each calendar year, and has security guards on the premises at all times. The term does not include any public or private driveway, street, sidewalk or walkway, parking lot, parking garage, or other parking area.

(2) “Institution of higher education” and “private or independent institution of higher education” have the meanings assigned by Section 61.003, Education Code.

(3) “License holder” means a person licensed to carry a handgun under Subchapter H, Chapter 411, Government Code.

(4) “Premises” means a building or a portion of a building. The term does not include any public or private driveway, street, sidewalk or walkway, parking lot, parking garage, or other parking area.

(5) “Secured area” means an area of an airport terminal building to which access is controlled by the inspection of persons and property under federal law, or an aircraft parking area that is used by common carriers in air transportation but not by general aviation and to which access is controlled under federal law. The term does not include a baggage claim area, a motor vehicle parking area used by passengers, employees, or persons awaiting an arrival, or an area used by the public to pick up or drop off passengers or employees.

(d) It is a defense to prosecution under Subsection (a)(5) that the actor possessed a firearm or club while traveling to or from the actor’s place of assignment or in the actual discharge of duties as:

(1) a member of the armed forces or national guard;

(2) a guard employed by a penal institution; or

(3) a security officer commissioned by the Texas Private Security Board if:

(A) the actor is wearing a distinctive uniform; and

(B) the firearm or club is in plain view; or

(4) a security officer who holds a personal protection authorization under Chapter 1702, Occupations Code, provided that the officer is either:

(A) wearing the uniform of a security officer, including any uniform or apparel described by Section 1702.323(d), Occupations Code, and carrying the officer's firearm in plain view; or

(B) not wearing the uniform of a security officer and carrying the officer's firearm in a concealed manner.

(e) It is a defense to prosecution under Subsection (a)(5) that the actor:

(1) checked all firearms as baggage in accordance with federal or state law or regulations before entering a secured area; or

(2) was authorized by a federal agency or the airport operator to possess a firearm in a secured area.

(e-1) It is a defense to prosecution under Subsection (a)(5) that the actor:

(1) possessed, at the screening checkpoint for the secured area, a handgun that the actor was licensed to carry under Subchapter H, Chapter 411, Government Code; and

(2) exited the screening checkpoint for the secured area immediately upon completion of the required screening processes and notification that the actor possessed the handgun.

(e-2) peace officer investigating conduct that may constitute an offense under Subsection (a)(5) and that consists only of an actor's possession of a handgun that the actor is licensed to carry under Subchapter H, Chapter 411, Government Code, may not arrest the actor for the offense unless:

(1) the officer advises the actor of the defense available under Subsection (e-1) and gives the actor an opportunity to exit the screening checkpoint for the secured area; and

(2) the actor does not immediately exit the checkpoint upon completion of the required screening processes.

(f) Except as provided by Subsection (e-1), it is not a defense to prosecution under this section that the actor possessed a handgun and was licensed to carry a handgun under Subchapter H, Chapter 411, Government Code.

(g) Except as provided by Subsections (g-1) and (g-2), an offense under this section is a felony of the third degree.

(g-1) If the weapon that is the subject of the offense is a location- restricted knife, an offense under this section is a Class C misdemeanor, except that the offense is a felony of the third degree if the offense is committed under Subsection (a)(1).

(g-2) An offense committed under Subsection (a)(8), (a)(10), (a)(11), (a)(13), (a-2), (a-3), or (a-4) is a Class A misdemeanor.

(h) It is a defense to prosecution under Subsection (a)(4)

Note: If you are a non-commissioned security officer in an establishment that displays a sign that says, “No weapons,” it is a good idea to advise patrons when they might not have seen the sign. If you encounter someone who is carrying a weapon they are not allowed to have and they refuse to leave, then you should immediately contact local law enforcement.

III Sec. 46.035. Unlawful Carrying of Handgun by License Holder

(a) A license holder commits an offense if the license holder carries a handgun on or about the license holder’s person under the authority of Subchapter H, Chapter 411, Government Code, and intentionally displays the handgun in plain view of another person in a public place. It is an exception to the application of this subsection that the handgun was partially or wholly visible but was:

- (1) carried in a holster by the license holder; or
- (2) in a holster, and the handgun and the license holder were in a motor vehicle.

(b) A license holder commits an offense if the license holder intentionally, knowingly, or recklessly carries a handgun under the authority of Subchapter H, Chapter 411, Government Code, regardless of whether the handgun is concealed or carried in a holster, on or about the license holder’s person:

- (1) on the premises of a business that has a permit or license issued under Chapter 25, 28, 32, 69, or 74, Alcoholic Beverage Code, if the business derives 51 percent or more of its income from the sale or service of alcoholic beverages for on-premises consumption, as determined by the Texas Alcoholic Beverage Commission under Section 104.06, Alcoholic Beverage Code;
- (2) on the premises where a high school, collegiate, or professional sporting event or interscholastic event is taking place, unless the license holder is a participant in the event and a handgun is used in the event;
- (3) on the premises of a correctional facility;
- (4) on the premises of a hospital licensed under Chapter 241, Health and Safety Code, or on the premises of a nursing facility licensed under Chapter 242, Health and Safety Code, unless the license holder has written authorization of the hospital or nursing facility administration, as appropriate;
- (5) in an amusement park; or
- (6) on the premises of a civil commitment facility.

(c) A license holder commits an offense if the license holder intentionally, knowingly, or recklessly carries a handgun under the authority of Subchapter H, Chapter 411, Government Code, 17 regardless

of whether the handgun is concealed or carried in a holster, in the room or rooms where a meeting of a governmental entity is held and if the meeting is an open meeting subject to Chapter 551, Government Code, and the entity provided notice as required by that chapter.

(d) A license holder commits an offense if, while intoxicated, the license holder carries a handgun under the authority of Subchapter H, Chapter 411, Government Code, regardless of whether the handgun is concealed or carried in a holster.

IV Sec. 46.15. Nonapplicability

(b) Section 46.02 does not apply to a person who:

(4) holds a security officer commission issued by the Texas Private Security Board, if the person is engaged in the performance of the person's duties as an officer commissioned under Chapter 1702, Occupations Code, or is traveling to or from the person's place of assignment and is wearing the officer's uniform and carrying the officer's weapon in plain view;

(5) acts as a personal protection officer and carries the person's security officer commission and personal protection officer authorization, if the person:

(A) is engaged in the performance of the person's duties as a personal protection officer under Chapter 1702, Occupations Code, or is traveling to or from the person's place of assignment; and

(B) is either:

(i) wearing the uniform of a security officer, including any uniform or apparel described by Section 1702.323(d), Occupations Code, and carrying the officer's weapon in plain view; or

(ii) not wearing the uniform of a security officer and carrying the officer's weapon in a concealed manner;

6.16 Definitions

Force can be used as both a noun and a verb. As a security officer, it is important to understand the word in all its contexts and to use force only when necessary.

a. Noun

- Strength or energy brought to bear, cause of motion or change, active power; moral or mental strength; capacity to persuade or convince.
- Violence, compulsion, or constraint exerted upon person or thing.
- The quality of conveying impressions intensely in writing or speech.

b. Verb

- To do violence to.

- To compel by physical, moral, or intellectual means.
- To make or cause through natural or logical necessity.
- To achieve or win by strength in struggle or violence.
- An aggressive act committed by any person which does not amount to assault and is necessary to accomplish an objective.
- Synonyms - compel, coerce, constrain, oblige.

c. Reasonable or Necessary Force

Reasonable force or necessary force is the amount of lawful physical coercion sufficient to achieve a legitimate law enforcement objective and is objectively reasonable under the facts, circumstances, and alternatives confronting an officer at the time action is taken.

d. Deadly Force

Deadly force is force that is intended or known by the actor to cause, or in the manner of its use or intended use is capable of causing death or serious bodily injury.

e. Seizure

Seizure means the restraint of property by a peace officer under Article 59.03(a) or (b) of this code, whether the officer restrains the property by physical force or by a display of the officer's authority and includes the collection of property or the act of taking possession of property.

6.17 The Use of Force Model

Use of force varies considerably, especially the wide gap between empty hand control (no weapons) and lethal/deadly force among different agencies and jurisdictions.

The reasonableness of any use of force is determined by assessing the totality of the circumstances that led to the need to use force. Officers respond with a level of force appropriate to the resistance, acknowledging that the officer may move from one part of the model to another in a matter of seconds. An example of a use of force model follows this progression:

1. Presence – Command Presence and Verbal Commands
2. Non-Threatening Resistance - Empty Hand Control, Escorts, etc.
3. Threatening Resistance - Non-Lethal Weapons, Strikes, etc.
4. Lethal Force/Deadly Force – All Tools

Excessive control results when the level of force is unreasonably greater than the subject's level of resistance, potentially causing preventable injury. The force used should be no more than a reasonable officer would use under the total circumstances of the situation.

Note: Most security companies have their own policy and procedures pertaining to use of force situations. There is no universally accepted standard set mandated by the Texas Department of Public Safety. The information included in this module is considered a best practice. Always refer to your company's policies and procedures concerning escalating series of actions an officer can take.

What level you actually enter into the use of force model is dictated by circumstances of the situation. When considering the totality of the circumstances you should be aware of the following:

- size and strength of the individual;
- if the person has access to weapons;
- does the person appear to be under the influence of alcohol or drugs;
- potential for injury to others, officers, or the location; and
- your environment.

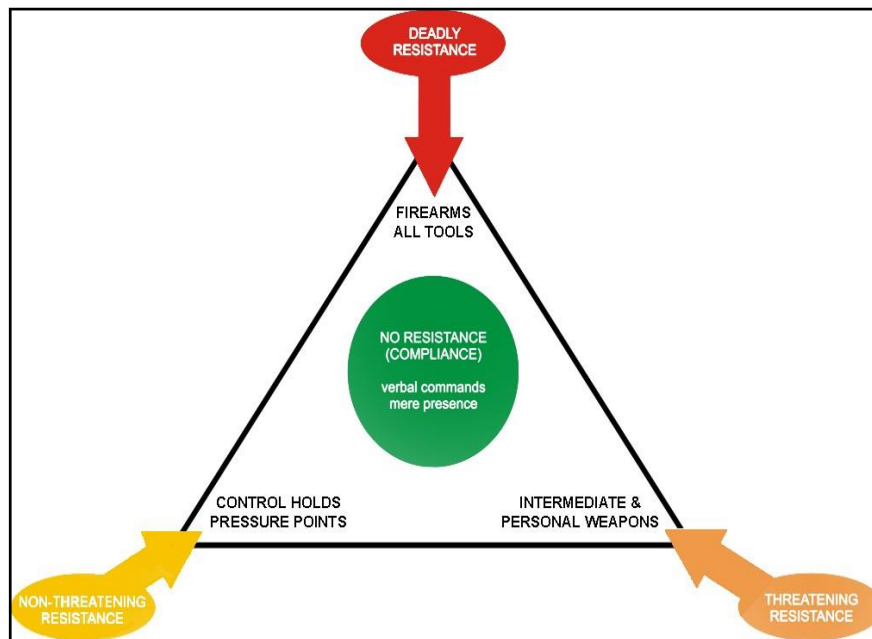
While making an arrest, all reasonable means are permitted to be used to effect it. No greater force, however, shall be resorted to than is necessary to secure the arrest.

You should consider the totality of the circumstances when making an arrest. You should be actively attempting to calm the situation and lower the level of force necessary in order to complete an arrest. In response to an incident, a security officer enters the force model at the level appropriate to the resistance.

Your safety, and the safety of others, must always be the number one priority. If there is a situation that will possibly lead to an arrest, immediately call your local law enforcement.

6.18 Dynamic Resistance Response Model

The Dynamic Resistance Response Model (DRM) is adopted by the Department as its use of force model directly related to suspects' behavior. The DRM is based upon the presumption that private security personnel seek compliance in all cases, and the goal of the DRM is to bring every confrontation to a compliant resolution. In the DRM, it is the suspect's behavior that determines the use of force. The Dynamic Resistance Response Model (DRM) by Chuck Joyner and Chad Basile seen in Figure 6.1.

Figure 6.1: Dynamic Resistance Response Model

The DRM emphasizes that the individual's level of resistance determines the officer's response and delineates suspects into one of four categories: non-resistant (compliant), non-threatening resistant, threatening resistant, and deadly resistant.

a. Non-Resistant (Compliant)

Suspects who do not resist, but follow all commands, are compliant. Only a security officer's presence and verbal commands are required when dealing with these individuals; no coercive physical contact is necessary.

b. Non-Threatening Resistance

Non-threatening resistance refers to a suspect who fails to follow commands and whose actions are neutral or defensive; the officer does not currently feel threatened by their actions. Usually this manifests when the subject isn't following your commands, but is also not doing anything that causes you to feel physically threatened. The courts have repeatedly ruled that it is the officer's perception of the threat that is important. If the officer does not feel physically threatened, they are not allowed to use pepper spray, a baton, or any other intermediate weapon. Reasonable responses to gain compliance from subjects displaying non-threatening resistance include the use of "empty hand techniques" such as escort techniques, pressure points, joint manipulation, control holds, and take-downs.

c. Threatening Resistance

Threatening resistance refers to when an officer feels threatened by the suspect's actions. An officer must respond with a level of force to stop, eliminate, or control the threat.

Justified responses include the use of personal weapons (hands, fists, feet), batons, and pepper spray. If the officer believes the subject's behavior is physically threatening to themselves or another person, then the officer is justified in using personal weapons, or intermediate weapons.

Through training and experience, a security officer might be able to see indicators of a threat before the suspect has attacked. The officer needs to make sure to document the perception of threat to protect themselves.

For example, the subject may assume a fighting stance, clearly indicating their intention to fight. This would be classified as threatening resistance even though an actual attack has not yet been launched.

Another example could be a verbal assault, with clearly communicated threats to commit harm. It is reasonable for the officer to feel threatened under these circumstances and would consider this threatening resistance.

d. Deadly Resistance

An individual exhibiting deadly resistance will seriously injure or kill the officer or another person if immediate action is not taken to stop the threat. The officer is justified in using force, including deadly force, reasonably necessary to overcome the offender and effect custody.

For each of the four suspect categories, officers have all of the tools in the preceding categories available. In each instance, officers should constantly give commands to the suspect when doing so does not jeopardize safety.

Remember, the suspect's level of resistance is responsible for the determination of the level of force (response) utilized by security officers.

6.19 Force Response to Resistance

As you assess the situations you find yourself in using the DRM, it is important to know what types of force can and should be used. This is often examined through the use of force model that corresponds with the types of resistance you might experience. Remember to always consider your company's policies and procedures when it comes to use of force.

I Presence

Without saying a word, the mere presence of a security officer can deter an individual or diffuse a potential situation by the simple use of body language and gestures. At this level gestures should be non-threatening and professional. Usually, the professionalism and physical presence of a security officer is enough to prevent a situation from escalating. This is often the best way to resolve most situations that you will encounter.

Example: If you come across someone who appears to be trespassing, you could approach and ask if they need help. The individual could simply be lost and have accidentally entered the area without realizing they shouldn't be there. If they are there intentionally, often your physical approach will be enough to make them leave. They may not have realized that someone was watching the area when they entered or decided to trespass.

II Verbal Commands

The use of voice commands, together with the officer's presence is usually enough to gain compliance from most subjects. The right combination of words, tone, and body language can de-escalate a tense situation and prevent the need for a physical altercation. Training and experience improves the ability of an officer to communicate effectively with everyone he/she comes in contact with.

You have been given a certain authority to enforce society's rules. Therefore, you must act and speak with authority. You can gain the confidence to perform these actions appropriately through your knowledge of the law and your ability to do what is right. You must use the right words for the situation at hand at the right time. You must be able to communicate skillfully under pressure, such as when dealing with:

- People who do not want to talk or listen
- Emotionally charged individuals
- Dangerous circumstances
- Being watched by others
- People who dislike or distrust security officers

Security officers are safer and more effective when they use communication skills to their tactical advantage. It's always best to start out calm but firm and non-threatening. Your choice of words and intensity can be increased as necessary, or you can use short and direct commands in more serious situations. You may typically use suggestions, advice, or directions continuing through to loud, repetitive

commands in conjunction with facial expressions, stance, and eye contact to achieve the desired results at this level.

Unless you are trying to take control of an already physical or dangerous situation, issuing stern verbal commands won't de-escalate the situation. The goal is always to obtain voluntary compliance and resolve a situation without the use of force.

a. Verbal Appeals

Types of effective verbal appeals include:

- Ethical appeal
 - Based upon position as a professional officer
 - Assures other person
 - Ethical appeal is useful when dealing with people who are upset and highly emotional
- Rational appeal
 - Based on use of reasoning
 - Appeal to common sense, good judgment, or community standards
 - Show that solution is reasonable and most likely to produce results
 - This appeal is valuable when dealing with people having a strong sense of right and wrong
- Practical appeal
 - Based on an urgent need to change a particular circumstance
 - Ignores long-term consequences
 - It is a short-term solution
 - Adapt yourself and persuade the other person that you are like them
 - Based on the beliefs and value system of the person
- Personal appeal
 - Based on addressing person's needs and desires
 - Set aside own personal values
 - This type of appeal works well with headstrong people who insist on getting their own way

b. Redirecting Behavior

Tools that can be used to redirect an individual's behavior as part of verbal commands:

- Listen

- Sort the real problem from the symptoms of the problem
 - Determine priorities you must respond to
 - Determine context of the event
- Empathize
 - Understand the other person's state of mind
 - See through the eyes of the other person
- Ask
 - Use questions to gain control by causing others to report to you
 - Questions to direct attention away from the problem
 - Demonstrates concern
 - Paraphrase
 - Repeat what you have learned in your own words
 - Forces the other person to stop talking and listen
 - Helps to ensure that the officer understands situation
 - Summarize
 - Allows the officer to conclude the situation
 - State the resolution clearly

III Empty Hand Control

Reasonable responses to gain compliance from subjects displaying non-threatening resistance include the use of “empty hand techniques” such as escort techniques, pressure points, joint manipulation, control holds, and take-downs. Empty hand control is characterized by a level of force that has a low probability of causing soft connective tissue damage or bone fractures. This technique may be very effective in controlling a passive resistance physical or actively resisting subject. This would include joint manipulation techniques and applying pressure to pressure points.

Note: The use of handcuffs is only allowed if you are committing a citizen's arrest. Always refer to company policies and procedures concerning the use of handcuffs so that you do not commit an unlawful arrest

If you have not been trained by a DPS-approved class or curriculum and have documentation as to the training you completed, do not attempt the technique. If someone (including you) gets hurt you can, and more than likely will, be held responsible, both civilly and/or criminally.

Officers utilizing empty hand control should consider the totality of the circumstance including, but not limited to:

- The potential for injury to the officer(s) or others if the technique is not used.
- The potential risk of serious injury to the individual being controlled.
- The degree to which the pain compliance technique may be controlled in application according to the level of resistance.
- The nature of the offense involved.
- The level of resistance of the individual(s) involved.
- The need for prompt resolution of the situation.

As with all levels in the use of force model, the application of technique shall be discontinued once the officer determines that compliance has been achieved.

Note: It is always better to not lay hands on a person. Remember that if you have not received proper training in these techniques, you should not attempt them.

IV Personal Weapons/Non-Lethal Weapons

Reasonable responses to mitigate threatening resistance include the use of personal weapons (arms, legs, hands, fists, feet), as well as intermediate weapons such as impact weapons and chemical spray. These techniques are characterized by an amount of force that would have a high probability of causing soft connective tissue damage or irritation of the skin, eyes, and mucus membranes, or bone fractures.

Expandable batons, batons, chemical sprays, and stun guns are considered hard intermediate weapons. Intermediate weapon techniques are designed to impact muscles, arms, and legs. Intentionally using an intermediate weapon on the head, neck, groin, kneecaps, or spine would be classified as deadly or lethal force.

V Lethal Force/Deadly Force

Lethal or deadly force is the application of force with a high probability of causing death or serious bodily injury.

Serious bodily injury includes unconsciousness, protracted or obvious physical disfigurement, or protracted loss of or impairment to the function of a bodily member, organ, or the mental faculty.

A firearm is the most widely recognized lethal or deadly force weapon. Other force might also be considered deadly force if the officer reasonably anticipates and intends that the force applied will create a substantial likelihood of causing death or very serious injury. For example, an automobile or weapon of opportunity could also be defined as a deadly force utility. Deadly force can be a strike to someone's face resulting in a broken nose and permanent disfigurement, a kick to the groin, a kick to the knee, or other aggressive strikes. Most strikes to targets that are not major muscle groups can lead to breaks and serious or permanent injury and are considered to be deadly force.

A non-commissioned security officer is not allowed to carry firearms. A commissioned security officer is allowed to carry a firearm after successfully completing the required training and demonstrating firearm proficiency. In all instances it is important to remember that there are other weapons, including your own body, that can be considered lethal. If you are forced into a situation where you must defend yourself and others, remember that your actions will be examined from this perspective.

6.20 References

- Basile, C.; Joyner, C. (2007, September). The Dynamic Resistance Response Model: A Modern Approach to the Use of Force. *FBI Law Enforcement Bulletin*, 76(9), 15-20.
- Global Security. (2019, September 11). *The Pool Is Closed For A Reason* [Video]. YouTube. https://www.youtube.com/watch?v=YnMkSXte_5Y

7 Arrests

7.1 Chapter Training Objective

Upon successful completion of this module, participants will be able to determine situations in which an arrest is appropriate and legal for a security officer to effect.

7.2 Chapter Outline Details

1. Outline the differences between types of liabilities.
2. Recognize available alternatives to arrest.
3. Discuss an arrest as effected by security officers using scenarios.
4. Identify standard policies and procedures around arrests.

7.3 Criminal vs. Civil Liabilities

Security officers must act according to the high-stress situations that they will likely find themselves in. It is important to remember that in all situations, you could be held liable for your actions, both civilly and criminally. There are important differences between civil and criminal liabilities.

I Types of Liability

Criminal liability means being held legally responsible for committing a criminal offense. This can be potential or actual responsibility; meaning that you are suspected of committing a crime.

In most cases, criminal liability hinges on two elements:

- actus reus - the actual act or omission that violated the law.
- mens rea - the guilty state of mind; the intention to commit.

This means in order to be found criminally liable, the prosecution must prove beyond a reasonable doubt that you committed the crime and also that you intended to do it. However, certain exceptions exist where “strict liability” is enforced, meaning that you can be held liable for the crime regardless of your intentions.

Civil liability means being held responsible for payment of damages or other court-enforcement in a lawsuit.

II Example

Mark and his fiancée, Mary, were shopping in a large department store in the mall. The evidence indicated that Mark left the department store without purchasing a tool. Soon after, Mark was confronted by a security officer in a hostile fashion. Mark was handcuffed after engaging in a physical altercation with the security guard. Mark's face was bleeding, his ribs were bruised, and he suffered other injuries. Mark was eventually acquitted at trial on all charges brought forth by the department store.

Who bears the legal responsibility for the physical injuries to Mark? Is the liability most likely civil or criminal?

7.4 Alternatives to Arrest

If you hurt someone while arresting them, you can be held criminally and/or civilly responsible. This is true even if you did not mean to hurt the person. Examples of issues security officers need to consider when making an arrest on an individual include:

- Assault
- False imprisonment
- Intentional infliction of emotional distress
- Invasion of privacy
- Negligence
- Trespass

Security officers are safer and more effective when they use communication skills to their tactical advantage. The goal is to obtain voluntary compliance and resolve a situation without the use of force.

I Company Policy

Your primary responsibility is to observe and report. As an extension of this you are deterring and potentially preventing crime. Remember, you are not a peace officer. Your right to arrest is the same as any other private citizen. This means that while you can arrest someone in certain circumstances, called a citizen's arrest, you are not obligated to do so. The company/client should advise you of their policy with respect to arrests. The majority of company policies require you to observe and report, rather than arrest.

Your primary duty is to protect the safety of yourself and others. Remember, if you get hurt attempting to make an arrest, you will not be as effective at protecting others. Your safety is extremely important.

II Questioning

As situations evolve, try to collect as much information as possible. Continue observing the situation and the environment and communicate with the individual(s) as much as you can until your local law enforcement arrives.

Note: Remember your main responsibility is to observe and report. If at all possible, leave the arresting up to local law enforcement. Always refer to company policies and procedures.

When you are asking someone questions, you are not detaining or arresting them. If the person does not want to talk to you, then do not force the issue by physically blocking or restraining them in some manner by physically blocking or restraining them in some manner. There is a lot to consider when deciding to make an arrest. Remember, it is an individual's right to leave at any given time. Ask yourself the question "Are you interfering with that right?"

III Considerations

The intent of this training is to ensure you fully understand the totality of the law concerning arrest. This ensured that you know what you can and cannot do under the law and reduces both your individual liability and your company's liability.

Before making an arrest, consider the following factors:

1. Physical Size - Is the suspect bigger or stronger than you? Are they in better physical condition or younger than you?
2. Weapons - Is the suspect armed? Could they be carrying a weapon? Are there other weapons in the vicinity? Are there objects that could be used as a weapon?
3. Escape - If you do not make an arrest now, will the suspect escape or continue to commit the act? What are the additional risks if an arrest is not made?
4. Type of Offense - Is the offense a felony or breach of the peace?
5. Relation to Your Job - Know your company's policies and procedures.

7.5 Activity – Arrest Scenarios

I Purpose

The purpose of this activity is for participants to identify standard policies and procedures around arrests.

II Participant Directions

1. Work through Worksheet 7-1 according to the instructor's directions.
2. When prompted by the instructor, discuss your answers to the scenarios.

7.6 Potential Arrest Scenarios

As a security officer, it is very important to know your company's policies and procedures. Make sure you are aware of and understand the expectations and responsibilities you have been assigned by your company/client. The following scenarios help explain proper actions in regard to the need to converse with people:

I Scenario 1

You are a security officer at an apartment complex working the 11pm-7am shift. The security officer working the shift before you is responsible for locking the swimming pool gates. There is a sign on the gate stating, "No entrance between the hours of 11pm-7am."

While walking the apartment complex, you observe a group of people in the pool area. None of them will admit to being a renter at this complex.

II Scenario 2

You are a security officer at a movie theater. There is a sign up at the theater that says, "We have the right to refuse service to anyone." You are aware that as a private business, the decision to ask a patron to leave is up to the manager. In this case, the patron is shouting to the concession cashier that their popcorn didn't have enough butter. The manager has asked you to have the patron removed. You have calmly told the patron that their behavior is unacceptable and requested that they please leave the premises. The patron refuses to leave.

Note: This could be considered disorderly conduct, trespassing, or assault depending on what the individual is doing.

7.7 References

- The People's Law Dictionary. S.v. "civil liability." Retrieved December 22, 2021 from <https://legal-dictionary.thefreedictionary.com/civil+liability>
- West's Encyclopedia of American Law, edition 2. S.v. "Criminal liability." Retrieved December 22, 2021 from <https://legal-dictionary.thefreedictionary.com/Criminal+liability>

8 Verbal and Written Communication Best Practices

8.1 Chapter Training Objective

Upon successful completion of this module, participants will be able to identify essential elements for effective verbal and written communications.

8.2 Chapter Outline Details

1. List best practices to use while communicating via radio.
2. Describe basic elements needed for adequate field note capture.
3. Identify importance and characteristics of well-written reports of all types.

8.3 Best Practices for Radio Communication

A two-way radio is a radio that can both transmit and receive. Using two-way radios to communicate in and around industrial sites of buildings saves workers time and is a practical solution for communication, especially in areas where other means of communication are almost impossible.

Most security companies have the security officer wear an earpiece and a microphone so others in close proximity cannot hear the communication transmitted.

You should verify at the beginning of your shift that your radio is functioning and has a full battery charge. This is important so you are not caught without a means of communication during an emergency.

You should always be professional, clear, and precise when talking on the radio. It is important that you remain calm at all times, especially while communicating on the radio. There are two main reasons for this:

- When you're agitated, you are less likely to communicate clearly and effectively.
- When you get excited, this will inadvertently cause a domino effect for others around you to get excited as well. Try to ground yourself through controlled breathing or other applicable means. This elevated state can devolve into chaos very quickly.

To help avoid these problems, you should always try to think about what you are going to say before you say it. This will ensure your thoughts are organized, you are not rambling, and you are not communicating in a panicked manner.

Always listen before you key your microphone to communicate. If someone else is talking on the radio, neither your transmission nor their transmission will go through. You should always attempt to be courteous to others.

8.4 Field Note Capture

As a security officer, your primary responsibility is to observe and report. Report writing is an essential element of communication between the client and security officer/company. The client relies on well written and neatly presented documents. These documents reflect the professionalism brought to the client by your company.

I Note Writing Basics

In order to write a detailed, professional report, you must have field notes. Most clients want a daily report to account for what they are paying for. You were hired to be the “eyes and ears” of any activity taking place on their property.

a. Observation

Good observation has a direct influence on how well the officer describes events in the report. All senses (sight, hearing, touch, taste, and smell) must be sharp to effectively observe what is going on, as well as maintain personal safety. Remember that the ability to accurately observe and describe the components of an event is developed over time and requires practice.

When observing, consider how you would describe objects, places, and people using clear and vivid language. Consider color, size, shape, texture, location, and/or type. Look for every possible distinguishing mark and for anything that might be compared or related to a commonly known thing or idea.

b. Collection

When preparing to gather information for an investigative report, approach the collection of information in an organized fashion. Have a notebook to keep all notes, paperwork, and other important information secure, and take concise but complete notes. Aim to develop a consistent shorthand so that you can quickly record notes. Write any notes that come to mind during interviews and observation to help keep your questions focused as well as any usual circumstances.

Your field notes will help you remember details. Below are some examples of good, detailed notes.

c. Example Field Note

5PM: security light in parking next to the pool was busted out. I observed several rocks laying under the light. No one was around the light; the parking lot was empty.

d. Example Interview Interaction

Mary from apartment #8 approaches you. You know Mary. She is usually very calm and pleasant to chat with; you can tell she is extremely upset and concerned. She informs you, “I saw this really

weird looking guy over there by the swing in the apartment complex. I have never seen him anywhere in complex. I do not think he lives here.”

It is important to collect the key information about the situation. some questions that you might want to ask include:

- Is he still here?
- What does he look like?
- What is he wearing?
- How old does he appear to be?
- Is there anything in particular that stood out?
- You mentioned “really weird”; what made him “weird?”

Your field notes from this encounter might look like this:

6 PM Mary, #8 approached me advising of a “really weird looking guy” by the swings. No longer there. Description- red short hair, right eye black. Wearing red coat, blue jeans, white tennis shoes. Appeared to be in his late 40’s, about 6 ft tall.

You know Mary from Apartment #8 and she has been very reliable with information she has given you previously. You go the swing set, the “really weird looking guy” is not present nor is he anywhere on the property.

Note: It is very important to note in your report Mary said he had a black eye. You do not want to be potentially held liable for someone's injuries if you never came into contact with them.

II Daily Reports

At the end of your shift, you are to write a daily report as to what happened on your shift. The more you understand your field notes, the easier it will be to write a detailed and professional daily report. Do not write “see field notes,” as others should not be expected to understand your note-taking methods.

Your reports could be the missing piece of the puzzle in a criminal investigation.

Looking back at the example from interviewing Mary in apartment #8, you have reported the “weird looking guy” that she was concerned about. Now imagine if a week down the road there is a girl that happened to be walking home and the reported individual approaches her and tries to grab her. When she gives a statement to police, her description matches the individual that you have taken notes about and included in your report. That would be a huge key in the investigation.

III Cameras

Some companies have invested in body cameras. A body camera is a video camera that records in real time and is worn on a security officer's body. Usually, the camera is worn somewhere on the upper chest area or on the pocket of the uniform.

Like any technology, these cameras can fail to operate properly. You shouldn't rely on them to capture the important details of any incident or situation. Even if you are provided with a camera, your observation skills are still important. Just like with your field notes, do not just write, "watch video," in your daily reports.

8.5 Elements of Written Reports

Report writing involves observing, recalling, and reporting information, which is collected and processed into a formal written report. This report offers a permanent overview of a temporary event. A well-written report can help to jog the memory of the security officer months after the fact. A security officer's formal written report can end up with the client that hired the security company, at an administrative hearing, or even read out loud as evidence in court.

The first step in writing the report is to decide whether your report will be written in the first- or third-person format:

- First person is written from the perspective of a sole individual and uses "I" when relaying information concerning an event or scenario.
- Third person is written from the omniscient perspective and uses he, she, they, or it to address any person, place, or thing.

I Characteristics of Well-Written Reports

Written communication is an integral part of an officer's daily tasks. Clear, complete sentences in reports and other written documents make it easier for those referencing the documents to understand their content.

a. Sentences

A sentence is a group of words that expresses a complete thought. It contains a subject and a predicate:

- Subject - The person, place, object, or idea about which something is said.
- Predicate - The part of the sentence that includes the verb and tells or asks about the subject of the sentence; the verb (or simple predicate) determines whether other words (such as objects and adverbs) are needed to complete sentence meaning.

Other parts of a sentence include:

- Direct Object - The direct recipient of the action of the verb.
- Indirect Object - The indirect recipient of the action of the verb, often identified by a preposition.
- Preposition - A word that shows the relationship between a noun or pronoun and other words in a sentence.
- Prepositional Phrase - A group of words made up of a preposition, its object, and any of the object's modifiers.

b. Examples of Sentences

- He ran.
 - This has only a subject [he] and verb [ran]; the verb is the entire predicate.
- She drives the truck.
 - This has a subject [she], verb [drives], and direct object, which receives the action [the truck].
- We carried the groceries up the stairs.
 - This has a subject [we], verb [carried], direct object [groceries], and prepositional phrase [up the stairs].
- The teacher gave her a test.
 - This has a subject [the teacher], verb [gave], indirect object, to or for whom the action is intended [her], and direct object [test].

c. Sentence Fragments

A sentence fragment is a group of words that expresses an incomplete thought and leaves out important components of the sentence.

A sentence fragment occurs:

- when words are omitted due to the mind working faster than the hand, or
- as a result of incorrect punctuation, such as a period in the middle of the idea rather than at the end.

Sentence fragments create confusion for the reader, who will have to spend time attempting to interpret the writer's intent and may form incorrect assumptions. Complete sentences include the subject of the sentence as well as the verb and if necessary, the object of the sentence.

d. Example of Sentence Fragments

- Incorrect: “Had a great time at the get-together on Saturday.”
 - Correction: “I had a great time at the get-together on Saturday.”

e. Run-on Sentences

Run-on sentences cause similar confusion for the reader and occur when:

- end-of-sentence punctuation is omitted, causing two or more sentences to be written as one, or
- closely related sentences are combined as one using a comma, known as a comma splice.
 - This is especially common if the second sentence begins with a personal pronoun that refers to a noun in the first sentence.

Run-on Example

- Incorrect: “The waiter forgot to put in our order, he apologized profusely.”
 - Correction: “The waiter forgot to put in our order. He apologized profusely.”

f. Misplaced Modifier

A misplaced modifier occurs when a word that pertains to, or modifies, one word attaches itself to another due to incorrect placement. Again, the reader must try to understand the writer's intent. When writing sentences, try to place each modifier as close as possible to the word it is modifying.

Misplaced Modifier Example

- Incorrect: “The mayor was unable to shake the hands of her constituents wearing bulky winter gloves.”
 - Correction: “Wearing bulky winter gloves, the mayor was unable to shake the hands of her constituents.”

g. Double Negative

When two negative words are used in the same clause, the result is a double negative. Double negatives commonly involve a conjunction. Negative words that should be used singularly and not in pairs including the words:

- no
- not
- never
- none

- no one
- nobody
- nothing
- nowhere
- neither

The following words are negative in meaning and should not be used in the same clause with any of the negative words listed above:

- barely
- scarcely
- hardly

Double Negative Examples

- Incorrect: "There's not no time left."
 - Correction: "There is no time left."
- Incorrect: "I can't hardly see the road in this fog."
 - Correction: "I can hardly see the road in this fog."

h. Passive and Active Voice

Using passive voice instead of active creates bulky sentences and, often, has less impact on the reader. When the verb is in the active voice, the subject performs the action. When the verb is in the passive voice, the subject receives the action.

Using active voice creates clear, strong sentences and emphasizes who is performing the action (thus creating accountability). However, if the person performing the action is unknown, the passive voice may be necessary.

Passive and Active Voice Examples

- Passive: "The bystander was hit by a stray bullet. – Active: "A stray bullet hit the bystander."
- Passive: "The visitors' names were not recorded."
 - Active: "The front-desk attendant did not record the visitors' names."

i. Quotation Marks

Quotation marks help the reader by setting off the words of the speaker. When quoting verbatim, use quotation marks. If not quoting verbatim, do not use quotation marks.

Quotation Mark Examples

Verbatim:

- Incorrect: Carl yawned and said, Let's go.
 - Correct: Carl yawned and said, "Let's go."

Not Verbatim:

- Incorrect: Carl yawned and said that "we should go."
 - Correct: Carl yawned and said that we should go.

j. Jargon

In reports and notes, avoid jargon, acronyms, and any terminology that is not common knowledge to the general public. If slang or jargon is used, it should set apart by quotation marks.

It is also important to define abbreviations. The first time an abbreviated word appears in a report, the word should be written out fully. Subsequent instances may be abbreviated once the abbreviation is initially defined.

- Incorrect: "As I got out of my patrol vehicle, the individual split northbound on King Street."
 - Correct: "As I got out of my car, the individual ran northbound on King Street."

II 5 W's + 1 H

There are 6 basic questions that your reports should cover. They are often referred to as the 5 W's + 1 H:

a. Who

Statements and evidence that explain evidence about the suspect such as:

- Complete names with correct spelling.
- Race, sex, hair color, eye color, approximate height, weight, age, and clothing description.
- If a vehicle is involved, include the year, model, color, and license plate number.
- Aliases used

Statements and evidence from witnesses and victims such as:

- Complete names with correct spelling.
- Occupations or participant information.

- Driver license or other ID numbers if available.
- Home and work addresses for witnesses and victims.
- Contact numbers for someone that can get in touch with witnesses or victims,

b. What

Statements or evidence that explain:

- Type of offense committed
- Property involved
- Statements
- Actions
- Means of travel, entry, etc.

c. When

Statements or evidence that explain:

- When the offense happened.
- When it was discovered.
- When was it reported.
- When was any evidence located.
- When were witnesses or victims contacted.
- When were arrests made.
- What time of time of day.

d. Where

Statements or evidence that explain:

- Locations of all offenses and evidence.
- Any reference points used to determine distance.
- Types of areas involved (residential, business, public area, etc.).
- Where were the victims, witnesses, and suspects in relation to the crime.
- Note the address where the incident occurred.

e. Why

Statements or evidence that support the reason the incident occurred.

- Revenge
- Drug addiction

- Financial gain etc.

f. How

Statements or evidence that explain:

- How the offense occurred and how the persons involved come to be participants.
- How the suspect approached, entered, or exited.
- How the security officer or law enforcement was notified.
- How scene and all those encountered appear.
- Note any breaches in protocol or security at the time of the incident and other factors that might have led to the occurrence.

III Accuracy

Your report must be accurate, concise and written in a way giving readers a complete overview of the event. Do not fabricate, omit, or lie on your report.

Ensure your report is written in an objective manner and free from bias. Do not put your opinions in a report; only state the facts. The report should be complete, clearly written, and legible.

It's best to write your report in sequential order, starting with the beginning of the event and detailing each item as it occurred. Events should be documented in past tense because the events occurred in the past. Writing in this format will enable the reader to better understand the event as a whole.

Be sure and specify details. By being accurate and writing down every detail, you won't ignore something that you didn't realize would end up being important.

Be sure and proofread your reports before submitting. This will help maintain your sense of professionalism as well as helping reduce misunderstandings from those who read your report

Make sure you have the date and time on your report. Some companies just want a synopsis of the events of the shift. Some companies want a synopsis and a report. You need to know what the company policies and procedures are so you can comply.

IV Importance of Clearly Written Reports

Security reports of facility operations can describe anything from discovering broken lights in the parking lot to an actual assault taking place. Whether you are documenting the activity of the broken light or the assault, the same principles apply. To communicate effectively, your report must be clear, concise, and informative.

Professionalism is critical because security reports may be reviewed by your supervisor, risk management, legal affairs, senior executives, or law enforcement. Security reports can also be used in lawsuits and court proceedings, so it is vital to write them effectively and completely.

Well-written security reports are more effective than sloppily written reports, which diminishes your credibility.

9 Emergencies and Safety Hazards

9.1 Chapter Training Objective

Upon successful completion of this module, participants will be able to describe roles taken on by security officers during an emergency or during hazardous incidents.

9.2 Chapter Outline Details

1. Discuss situational awareness with regards to security officers.
2. Discuss common emergencies and safety hazards and how to respond to them.
3. Discuss steps to take when responding to an active attack event.

9.3 Situational Awareness

Presence of mind may be described as the ability to correctly understand and assess events as they occur in complex, rapidly changing environments that can include an element or elements of danger. People have recognized the importance of this quality throughout history, particularly on the battlefield, but also in numerous other high stress circumstances wherever extreme pressure exists.

Situations can occur in an array of different locations, including, but not limited to:

- football fields,
- parking lots,
- music festivals, or
- on the street.

The ability to accomplish and exhibit presence of mind is an incalculable asset. This first requires perception and understanding, followed by the development of this skill. Some individuals adapt more quickly and readily than others to this new way of thinking. But once mastered, presence of mind gives an individual the ability to pay attention to rapidly changing details while maintaining composure.

A subset of presence of mind is situational awareness. This is the ability to comprehensively understand the circumstances someone finds themselves in. Situational awareness represents the part of presence of mind that deals with understanding the intentions and capabilities of adversaries, as well as other circumstances pertaining to and surrounding an event.

You must observe the people that you encounter and be aware of the behaviors they are exhibiting. Be watchful for suspicious activity and other behaviors that may indicate an individual is in possession of a weapon or other item that could cause harm.

Pay attention and watch for things that are out of the ordinary. Some places that you might frequently pass through can include:

- hallways,
- restrooms,
- stairwells, and
- parking lots.

Because you will spend a large amount of time looking at these same areas, you might be tempted to get through them as quickly as possible. Do not get complacent and begin to zone out while working. If you are just going through the motions of checking off a checklist to comply with the client and/or facility rules, you may find yourself in a difficult or compromising situation and could be overcome by an event.

If a person is in a difficult situation and cannot think clearly because of the ensuing events, then that person must call upon previous mental training and regain his/her presence of mind. Usually, if one is overcome by events and cannot recover immediately, failure is virtually inevitable. Your failure could be detrimental to you or others.

Remember your job is to observe, report, detect, and deter. It is imperative to remain focused and attuned to details at all times.

9.4 Critical Incident Response for Security Officers

Security officers should be trained and prepared to respond to a critical incident quickly and effectively.

Note: Critical incidents are situations that are out of the ordinary and are typically some type of emergency. This section covers the basics of critical incident response.

A few examples of a critical incident include:

- natural disasters,
- acts of terrorism,
- robberies,
- assaults,
- sabotages, or
- severe accidents.

Identifying, accessing, evaluating, reporting, documenting, and responding appropriately to critical incidents are all important duties and responsibilities of security officers.

I Basic Response Concepts

The incident response procedure depends on the organization, size, and type of incident. However, the basic concept for the critical incident response can be used in each situation. No situation is exactly the same; there is no way to plan everything.

A security officer has certain procedural items that they should follow at any emergency. These include:

- assessing risks to health and safety of everyone involved,
- reducing the risk of further damage to the:
 - physical, both people and property
 - psychology of those involved
 - reputation of the organization
- isolating the threats or hazards

Security officers should prepare for their role in a potential incident by formulating a plan before an incident occurs. This is called crisis rehearsal. By visualizing the incident and evaluating possible risks and opportunities, the officer can be better prepared to achieve a positive outcome. Mental preparation enables officers to become familiar with the look and feel of a critical incident and be better prepared to defuse the stress and shock. This mental rehearsal creates a learned response in the mind so that under pressure, the subconscious will guide the physical actions. Operational decisions are based on training and experience, so training that is realistic and appropriate is important to minimize the response time needed to successfully manage critical incidents.

It is imperative to have a good, solid working relationship with your local law enforcement agencies, first responders, and health care workers. We are all in this together.

II Standard Operating Procedures

Security officers should have a formalized plan of action in the event of an emergency. A common practice would be for the company to have a Standard Operating Procedure (SOP) established for officers to follow. The following are some examples of what can be included in a SOP for critical incident responses:

- Actions to take in the event of an incident that has been planned for.
 - Not all situations can be planned for, but you should attempt to create plans for as many as possible.
- Identifying personnel that are responsible for each action.

- This can be by job title or by named individual.
- Establishing clear communication and reporting lines.
- Outlining triggers for escalating the control of incident sites to external agencies.
- Listing procedures for returning to normal operations after an incident has concluded.
 - This may also include post-incident management steps as well as requirements for after action reports.

Your first concern is the safety of the public. You must be calm, give clear directives, and communicate with the proper authorities.

A licensed security officer has the same capabilities as a private citizen. During an emergency, your role is still the protection of the client's or employer's assets. You do not have the same job duties, training, or capabilities under the law as a licensed peace officer. You may not interfere with peace officers who respond to an incident, even if it is at your assigned post, property, or premises.

As a citizen you must comply with law enforcement orders, even if ordered to leave your post. If you are instructed by a peace officer to leave your post, you need to notify your company representative, designated officer, or immediate supervisor immediately and advise them of the situation and what you were instructed to do.

9.5 Common Emergencies and Safety Hazards

An unfortunate fact of our world is that emergencies can and often do happen. Part of keeping those around you safe means knowing the proper ways to deal with these events/situations if they occur. Different types of emergencies and hazards have best practices identified for these events. Your company will have specific actions outlined in their policies and procedures that you should take when it comes to emergencies, but some good practices are listed below.

I Fire

When a fire occurs, evaluate the type and extent, and contact 911 immediately. It is important to provide the 911 operator with clear, concise, and accurate information including:

- Your reason for calling
- The fire's address
 - Actual street address (12345 Main St.) or distance from landmarks (1/2 mile south on Hwy 90 from the intersection of FM123 and Hwy 90, on the left).

- Location of building, land, or property at that address that is involved in the fire (a brown Ford LTD in the rear parking lot).
- Use compass direction to describe location within the confines of a particular street address (NW corner of the Acme building located at 12345 Main St.).
- State the fire's location (roof, number of floors in building, approximate amount of acreage if it is a brush or forest fire).
- Is the building occupied?
 - Number and location of people
 - Type of materials typically stored in building (if a warehouse).
 - Apparent injuries
- If flames are visible
 - Smoke
 - Color
 - Smell

You should always have a planned escape route in case of fire. Fire control measures should only be taken for small, isolated fires. If it is a large fire, all personnel should be evacuated. As you are at your post, whether it is mobile or stationary, make sure that emergency exits are accessible and unblocked.

It is also a good idea to make sure the fire extinguisher at your post is functioning properly. If your post does not have a fire extinguisher, be sure to request one.

The people you are protecting are relying on you to make sure they are safe. Know what the company policy is; know what the client policy is. Know protocol of what to do in the event of a fire. If there is no protocol, this is an opportunity to get one in place before something happens. The last thing you want on your hands is chaos.

a. 911 Call Example

The 911 operator answers the phone and asks, "What is your emergency?" A proper reply would sound like:

"I am security officer John Doe. I would like to report that the building located at 5656 Main Street is on fire. This building is not currently occupied, and all the people have been evacuated. There are visible flames coming from the south side of the building—the side facing the bookstore. The

building has filled up with smoke. The people that were in the building are in the coffee shop parking lot across the street with no apparent injuries.”

Do not call 911 and yell:

“The building is on fire! Send help! Hurry!”

Remember you must remain calm. People are counting and depending on you to keep them safe.

II Accidents

Many different accidents can occur at your duty assignment including falls or contact with electricity and/or chemicals. Common things that you can monitor and try to prevent/resolve before it might cause an accident include:

- Spills
 - If you see a spill on the floor, this could be a hazard for a patron. Advise someone there is a spill so no one will slip, fall, and hurt themselves. As soon as possible, block off the area and request the appropriate personnel to help clean up the spill.
- Broken/Damaged Equipment
 - If you are working in an apartment complex and you notice the swing set is broken, be sure and bring that broken swing set to someone’s attention. This is a potential hazard where a child could be injured.
- Animals
 - If you notice animals in your area that could be dangerous, (such as a stray dogs), you should notify animal control. While they may seem gentle at first, stray animals can attack and spread disease.

Unfortunately, accidents do happen and can result in a number of things. You will almost certainly encounter some while you work. You should never treat any personal injuries, or injuries of a victim, unless you have medical training and medical supplies on hand.

III Medical Emergencies

Should an immediate medical emergency arise, your first action should be to notify emergency medical services (EMS) by calling 911. If the 911 operator tells you to apply pressure, roll a patient over, or some other form of care, then you should administer medical attention. The information you provide should be similar to what was mentioned about calling during a fire. This includes:

- Your name
- Location of injured person including:
 - street address
 - location on property
 - directions on locating the person
- The main complaint of the injured person
 - Stopped breathing, broken arm, heart attack, other
- Injured person's age, sex, and weight if possible
- Provide information on any measures already performed
 - If first aid or CPR are being performed on scene

You should always contact 911 for an ambulance. Let the patient deny transport from EMS if they so choose. They will need to sign a waiver stating they deny transport to a medical facility. This way you are relieved of any liability because the patient cannot claim that assistance wasn't offered.

Only after completing all of the above should you contact your supervisor. This also minimizes liability by not making the patient wait longer for care.

IV Bomb Threats

A bomb can look like anything. Look for things that are out of place or that do not belong in an area. Be suspicious of unattended bags, briefcases, and boxes left in strange places. If you find a suspected bomb, you should never touch it. Notify 911 immediately from a safe distance while keeping others away from the area.

If someone makes a bomb threat in person, you should remain calm. Remember, people are counting on you to keep them safe. Be observant and try to remember the following information:

- Physical characteristics of the individual
- What the person sounded like
- The actions of the individual
- What the suspect was carrying and anything that they left behind
- Written materials
 - If a bomb threat is received in writing it should be kept, including any envelope or container used.

- Unnecessary handling must be avoided, and every possible effort must be made to retain possible evidence such as fingerprints, handwriting, paper and postmarks.

If there is a phone call advising of a bomb, the person answering the call should take the threat seriously. Try to keep the caller on the phone and obtain as much information as possible including:

- What are the callers wants or demands?
- When will the bomb explode?
- Where is the bomb located?
- What does the bomb look like?

After a threat has been identified, you should immediately contact 911 to inform them of the situation. You should relay all of the information that you have collected about the threat.

V Hazardous Materials/Dangerous Goods

Hazardous materials (HAZMAT) and dangerous goods can be defined as any substance (gas, liquid, or solid), either alone or mixed with another substance, that may cause injury or death to a person or damage to the environment. A HAZMAT incident happens when hazardous materials or dangerous goods escape, or have a potential to escape, their container in an uncontrolled environment.

The substances fit into different classifications. Any vehicle transporting hazardous material must have a diamond shaped identification placard, detailed in Appendix B, showing what type of material the vehicle is transporting. These placards will be color-coded and will use words, symbols, or both to identify the materials contained within them. Labels communicate the same hazards for small containers and packages offered for transport.

Should you encounter an incident of this nature, your first action is to contact 911 and provide them with pertinent information such as:

- Your name,
- the location and nature of the incident,
- the name and identification number of the material involved,
- the shipper, consignee, and point of origin,
- the carrier name, rail car, or truck number,
- the quantity of material being transported and/or escaped,
- the local conditions including weather, terrain, proximity to schools, and hospitals,

- any injuries or exposures, and
- any other emergency response agencies that have been notified.

After this is done, contact your supervisor or the person designated to be notified by your company in the event of a HAZMAT incident.

Be sure to maintain a safe distance from the spill or accident. This can vary from a few hundred feet to a mile depending on the substance.

Keep the potential of drifting fumes and gas in mind. Victims are often overcome by fumes or vapor from a spill without coming into physical contact with the substance. Be aware of wind direction and speed. It can affect how fast flames and vapors can travel.

It is also your responsibility to secure the scene. Without entering the immediate hazard area, do everything you can to secure the location and ensure the safety of people and the environment. Never allow yourself or anyone else in the area to walk into or touch the spilled material.

9.6 Active Attack Event Response

As discussed previously, your goal should always be the safety of yourself and others. Your company will have a more detailed explanation of exactly what steps they want you to take in an active attack. The Advanced Law Enforcement Rapid Response Training (ALERRT) Center is nationally known as setting the National Standard in Active Shooter Response Training by the FBI. They define an active attack as occurring when an individual or individuals are actively killing or attempting to kill multiple unrelated people in a public space. Avoid | Deny | Defend™ has been developed by ALERRT as an easy to remember method for individuals to follow during active attack events.

I Step 1 – Avoid

Be constantly aware of your surroundings. There are three bad things we should always attempt to Avoid: bad people, bad locations, and bad times. Remain vigilant when you are forced to be in these situations. You should always assess your surroundings, especially if you find yourself in locations that might be a target for these types of events.

Always know the escape routes that you could take in the event someone starts shooting or some other disaster befalls you. This includes marked exits, windows, and stairwells. At the first opportunity to leave the building, you should do so.

II Step 2 – Deny

If you find that you cannot get away from the attacker by exiting the structure, the next option is to Deny the attacker access to you and those around you. You can do this by moving into a room and locking the door. This should only be the first step. A locked door alone will only serve as a temporary obstacle for someone who is dedicated to getting inside the area you control.

If you have control of the lighting in the area you are in, turn off the lights. This will aid you in two different ways:

1. It gives the appearance that the room is empty, and that the shooter should continue past your location in order to find more victims.
2. If the attacker gains access into your room, the darkness will be to his disadvantage and to your advantage. Your eyes will have adapted to the dark, and the attacker will be coming from light to dark, giving you the advantage of sight if forced to defend yourself.

III Step 3 – Defend

Remember that the attacker is trying to kill you, and you have the legal right to defend yourself! Again, remember that having that right doesn't automatically equate to having the ability to defend yourself. That part must be practiced. If you find yourself in a situation where your attempts to Avoid/Run and Deny/Hide have failed, you must Defend yourself or die. Prepare to Fight for your life and the innocent lives around you. In most situations, victims will outnumber the attacker by 10, 20, or 50 to 1. Those are good odds if you can get others to help swarm the attacker.

Position yourself where you can surprise the attacker, close to the door along a wall and out of sight. The change in lighting conditions, as well as the additional obstacles placed in his way, will give you the small window of opportunity to attack. Grab the gun and point it away from other victims. At the same time have others attack the head and eyes while others attack the groin, knees, and feet. Once you begin the attack, fight as if your life depends on it, because it does. Use weapons of opportunity, such as scissors, hot coffee, staple guns, fire extinguishers, or any object that could incapacitate someone.

Tell yourself that you are going to win at all costs. Refuse to give up no matter how overwhelming the odds might appear. The emotion of fear is natural in a situation like this. Turn fear to anger and rage and attack. Remember, being shot does not mean you're dead. Prepare yourself to be shot mentally. If you are shot and are not incapacitated by the injury, continue to fight for your life.

9.7 References

- Bureau of Labor Statistics, U.S. Department of Labor, Occupational Outlook Handbook, Security Guards and Gambling Surveillance Officers, at <https://www.bls.gov/ooh/protective-service/security-guards.htm>.

Appendix A Glossary

Actus Reus. The act or omission that violates the law.

Bail Bond Surety. A person who executes a bail bond as a surety or co- surety for another person; or for compensation deposits cash to ensure the appearance in court of a person accused of a crime.

Baton. A type of club. These come in multiple varieties including expandable which can collapse into itself and side handled which has different grips that allow for different movements.

Civil Liability. Being held responsible for payment of damages or other court-enforcement in a lawsuit.

Code of Criminal Procedure. The set of rules governing the series of proceedings through which the government enforces substantive criminal law. Municipalities, states, and the federal government each have their own criminal codes, defining types of conduct that constitute crimes.

Company License. A license issued by the department that entitles a person to operate as a security services contractor or investigations company.

Control. Degree of influence you must exert over another (violation) to safely take the person into custody.
Criminal Liability. Being held legally responsible for committing a criminal offense.

Criminal Negligence. With respect to circumstances surrounding his conduct or the result of his conduct when he ought to be aware of a substantial and unjustifiable risk that the circumstances exist or the result will occur. The risk must be of such a nature and degree that the failure to perceive it constitutes a gross deviation from the standard of care that an ordinary person would exercise under all the circumstances as viewed from the actor's standpoint.

Deadly Force. Force that is intended or known by the actor to cause, or in the manner of its use or intended use is capable of causing, death or serious bodily injury. Deadly force does not only mean that you are shooting someone or striking the person to kill them. Deadly force, according to the law, can be striking someone with a fist in the face and breaking his nose, kicking to the groin, kicking to the knee, etc. Most strikes to targets that are not major muscle groups can lead to breaks and serious/permanent injury and are considered to be deadly force.

Department of Public Safety. An agency of the state to enforce the laws protecting the public safety and provide for the prevention and detection of crime.

Hard Empty Hand Control. To control active aggression, counterstrikes and restraints may be used. Examples are empty hand strikes and kicks. These techniques may result in minor injury including bruising, lacerations and contusions. Targets should be major muscle groups.

Hard Intermediate Weapons. Typically an ASP (expandable baton), straight stick, or PR-24 (side handled stick).

Intentionally. With respect to the nature of his conduct or to a result of his conduct when it is his conscious objective or desire to engage in the conduct or cause the result.

Knowingly. With respect to the nature of his conduct or to circumstances surrounding his conduct when he is aware of the nature of his conduct or that the circumstances exist. A person acts knowingly, or with knowledge, with respect to a result of his conduct when he is aware that his conduct is reasonably certain to cause the result.

License. The whole or a part of a state agency permit, certificate, approval, registration, or similar form of permission required by law.

Licensing. A state agency process relating to the granting, denial, renewal, revocation, suspension, annulment, withdrawal, or amendment of a license.

Mens Rea. The guilty state of mind, the intention to commit an offense.

OC (Pepper) Spray. Pepper spray is an inflammatory. It results in the burning sensation and a closing of the eyes, inflaming muscle membranes, and burning sensation of the skin, and a sensation of not being able to breathe.

Party. A person or state agency named or admitted as a party.

Person. An individual, partnership, corporation, association, governmental subdivision, or public or private organization that is not a state agency.

Presence of Mind. The ability to remain calm and take quick, sensible action.

Reasonable Means. Having sound judgment; fair and sensible; as much as is appropriate or fair; moderate.

Recklessly. With respect to circumstances surrounding his conduct or the result of his conduct when he is aware of but consciously disregards a substantial and unjustifiable risk that the circumstances exist or the result will occur. The risk must be of such a nature and degree that its disregard constitutes a gross deviation from the standard of care that an ordinary person would exercise under all the circumstances as viewed from the actor's standpoint.

Rule. A state agency statement of general applicability that implements, interprets, or prescribes law or policy; or describes the procedure or practice requirements of a state agency

Situational Awareness. A foundation for successful decision-making across a broad range of situations viewed as “a state of knowledge.”

State Agency. A state officer, board, commission, or department with statewide jurisdiction that makes rules or determines contested cases. The term includes the State Office of Administrative Hearings for the purpose of determining contested cases.

Stun Gun. An electroshock weapon is a less-lethal weapon that utilizes an electric shock to incapacitate a target by either temporarily disrupting voluntary muscle control and/or through pain compliance. There are several different types of electroshock weapons.

Tactical Advantage. An action or plan which is intended to help someone achieve what they want in a particular situation.

Two-Way Radio. A radio that can both transmit and receive.

Use of Force Model. A standard that provides law enforcement officers and civilians with guidelines as to how much force may be used against a resisting subject in a given situation.

Appendix B HAZMAT Placards



U.S. Department
of Transportation
Pipeline and
Hazardous Materials
Safety Administration

DOT CHART 15 Hazardous Materials Markings, Labeling and Placarding Guide

Refer to 49 CFR, Part 172:

Marking - Subpart D

Labeling - Subpart E

Placarding - Subpart F



NOTE: This document is for general guidance only and should not be used to determine compliance with 49 CFR, Parts 100-185.

HAZARDOUS MATERIALS MARKINGS



* The new limited quantity marking designates hazardous material packages prepared for air transport (Y) and packages not prepared for air transport (all other modes). The ORM-D classification and the use of packagings marked "Consumer commodity, ORM-D" is authorized until December 31, 2020, for domestic highway, rail, and vessel transportation. Transitional exception—Square-on-point with Identification Number: except for transportation by aircraft and until December 31, 2014, a package containing a limited quantity may be marked with identification number, preceded by the letters "UN" or "NA".

Hazardous Materials Warning Labels

Actual label size: at least 100 mm (3.9 inches) on all sides

CLASS 1 Explosives: Divisions 1.1, 1.2, 1.3, 1.4, 1.5, 1.6	CLASS 2 Gases: Divisions 2.1, 2.2, 2.3	CLASS 3 Flammable Liquid	CLASS 4 Flammable Solid, Spontaneously Combustible, and Dangerous When Wet: Divisions 4.1, 4.2, 4.3	CLASS 5 Oxidizer, Organic Peroxide: Divisions 5.1 and 5.2
§172.411	§172.405(b), §172.415, §172.416, §172.417	§172.419	§172.420, §172.422, §172.423	§172.426, §172.427
CLASS 6 Poison (Toxic), Poison Inhalation Hazard, Infectious Substance: Divisions 6.1 and 6.2	CLASS 7 Radioactive	CLASS 8 Corrosive	CLASS 9 Miscellaneous Hazardous Material	Cargo Aircraft Only
§172.323, §172.405(c), §172.429, §172.430, §172.432	§172.436, §172.438, §172.440, §172.441	§172.442	§172.446	§172.448
Empty Label EMPTY				

For Regulated Medical Waste (RMW), an Infectious Substance label is not required on an outer packaging if the OSHA Biohazard marking is used as prescribed in 29 CFR 1910.1030(g). A bulk package of RMW must display a BIOHAZARD marking.

General Guidelines on Use of Warning Labels and Placards

LABELS

See 49 CFR, Part 172, Subpart E, for complete labeling regulations.

- The Hazardous Materials Table [§172.101, Col. 6] identifies the proper label(s) for the hazardous material listed.
- Any person who offers a hazardous material for transportation MUST label the package, if required [§172.400(a)].
- Labels may be affixed to packages when not required by regulations, provided each label represents a hazard of the material contained in the package [§172.401].
- For labeling mixed or consolidated packages, see §172.404.
- The appropriate hazard class or division number must be displayed in the lower corner of a primary and subsidiary hazard label [§172.402(b)].
- For classes 1,2,3,4,5,6, and 8, text indicating a hazard (e.g., "CORROSIVE") is NOT required on a primary or subsidiary label. The label must otherwise conform to Subpart E of Part 172 [§172.405].
- Labels must be printed on or affixed to the surface of the package near the proper shipping name marking [§172.406(a)].
- When primary and subsidiary labels are required, they must be displayed next to each other [§172.406(c)].
- For a package containing a Division 6.1, PG III material, the POISON label specified in §172.430 may be modified to display the text PG III instead of POISON or TOXIC. Also see §172.405(c).
- The ORGANIC PEROXIDE label [§172.427] indicates that organic peroxides are highly flammable. Use of the ORGANIC PEROXIDE label eliminates the need for a flammable liquid subsidiary label. The color of the border must be black and the color of the flame may be black or white.

PLACARDS

See 49 CFR, Part 172, Subpart F, for complete placarding regulations.

- Each person who offers for transportation or transports any hazardous material subject to the Hazardous Materials Regulations must comply with all applicable requirements of Subpart F [§172.500].
- Placards may be displayed for a hazardous material, even when not required, if the placarding otherwise conforms to the requirements of Subpart F of Part 172 [§172.502(c)].
- For other than Class 7 or the DANGEROUS placard, text indicating a hazard (e.g., "FLAMMABLE") is not required. Text may be omitted from the OXYGEN placard only if the specific ID number is displayed on the placard [§172.519(b)(3)].
- For a placard corresponding to the primary or subsidiary hazard class of a material, the hazard class or division number must be displayed in the lower corner of the placard [§172.519(b)(4)].
- Except as otherwise provided, any bulk packaging, freight container, unit load device, transport vehicle or rail car containing any quantity of material listed in Table 1 must be placarded [§172.504].
- When the aggregate gross weight of all hazardous materials in non-bulk packages covered in Table 2 is less than 454 kg (1,001 lbs), no placard is required on a transport vehicle or freight container when transported by highway or rail [§172.504(c)].
- Notes: See §172.504(f)(10) for placarding Division 6.1, PG III materials.
- Placarded loads require registration with USDOT. See §107.601 for registration regulations.
- The new ORGANIC PEROXIDE placard became mandatory 1 January 2011 for transportation by rail, vessel, or aircraft and becomes mandatory 1 January 2014 for transportation by highway. The placard will enable transport workers to readily distinguish peroxides from oxidizers [§172.552].

PLACARDING TABLES

[§172.504(e)]

TABLE 1

Category of material (Hazard Class or division number and additional description, as appropriate)	Placard name
1.1.....	EXPLOSIVES 1.1.....
1.2.....	EXPLOSIVES 1.2.....
1.3.....	EXPLOSIVES 1.3.....
2.3.....	POISON GAS.....
4.3.....	DANGEROUS WHEN WET.....
5.2 (Organic peroxide, Type B, liquid or solid, temperature controlled).....	ORGANIC PEROXIDE.....
6.1 (Materials poisonous by inhalation (see §171.8)).....	POISON INHALATION HAZARD.....
7 (Radioactive Yellow III label only).....	RADIOACTIVE ¹

¹RADIOACTIVE placard also required for exclusive use shipments of low specific activity material and surface contaminated objects transported in accordance with §173.427(b)(4) and (5) or (c) of the subchapter.

TABLE 2

Category of material (Hazard Class or division number and additional description, as appropriate)	Placard name
1.4.....	EXPLOSIVES 1.4.....
1.5.....	EXPLOSIVES 1.5.....
1.6.....	EXPLOSIVES 1.6.....
2.1.....	FLAMMABLE GAS.....
2.2.....	NON-FLAMMABLE GAS.....
3.....	FLAMMABLE.....
Combustible Liquid.....	COMBUSTIBLE.....
4.1.....	FLAMMABLE SOLID.....
4.2.....	SPONTANEOUSLY COMBUSTIBLE.....
5.1.....	OXIDIZER.....
5.2 (Other than organic peroxide, Type B, liquid or solid, temperature controlled).....	ORGANIC PEROXIDE.....
6.1 (Other than materials poisonous by inhalation).....	POISON.....
6.2.....	(None).....
8.....	CORROSIVE.....
9.....	Class 9 (See §172.504(f)(9)).....
ORM-D.....	(None).....

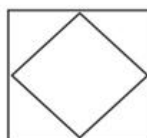
IDENTIFICATION NUMBER DISPLAYS



§172.332

Appropriate placard must be used with orange panel.

IDENTIFICATION NUMBER MARKINGS ON ORANGE PANELS OR APPROPRIATE PLACARDS MUST BE DISPLAYED ON: (1) Tank Cars, Cargo Tanks, Portable Tanks, and other Bulk Packagings; (2) Transport vehicles or freight containers containing 4,000 kg (8,820 lbs) in non-bulk packages of only a single hazardous material having the same proper shipping name and identification number loaded at one facility and transport vehicle contains no other material, hazardous or otherwise; and (3) transport vehicles or freight containers containing 1,000 kg (2,205 lbs) of non-bulk packages of materials poisonous by inhalation in Hazard Zone A or B. See §§172.301(a)(3), 172.313(c), 172.326, 172.328, 172.330, and 172.331.



§172.527

Square white background required for placard for highway route controlled quantity radioactive material and for rail shipment of certain explosives and poisons, and for flammable gas in a DOT 113 tank car (§172.507 and §172.510).

This Chart is available online at the following link:
<http://phmsa.dot.gov/hazmat>



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